

DEVELOPMENT CONTROL PLAN 2015

Amended April 2025

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Above:
Photomontage from the *Capture Coolamon* photographic competition. (2013)

PART A: INTRODUCTION & GENERAL INFORMATION

1. What is Development?

In accordance with the *Environmental Planning & Assessment Act 1979* (*EP&A Act*) development can be defined as anything that involves the use of land, the subdivision of land, the erection of a building, the carrying out of a work, the demolition of a building or work, and/or any other act, matter or thing referred to in section 1.5 of the Act that is controlled by an Environmental Planning Instrument.

In many cases, a Development Application will need to be lodged with Council prior to undertaking any of the abovementioned development types. Generally, development will fall into three categories – Exempt, Complying and Local Development.

Exempt Development does not require Consent, however must still meet pre-determined development standard.

Complying Development requires the consent of either Council or an Accredited Certifying Authority. Proposals lodged as Complying Development also need to meet pre-determined development standards, whilst a Complying Development Consent must be issued by Council or the Certifying Authority within 10 days.

The specific development standards for Exempt and Complying Development are set out within State Environmental Planning Policies (or SEPP's), and include but are not limited to, the *State Environmental Planning Policy (Exempt & Complying Development Codes) 2008 (*or *Codes SEPP)* and the *State Environmental Planning Policy (Transport and Infrastructure)*.

In the Coolamon Shire, development that does not meet the criteria of Exempt or Complying Development will more than likely be Local Development. Local Development requires the Consent of Council, upon which the proposal is assessed on its merits prior to a determination being made. Accordingly, this plan predominantly deals with Local Development.

Additional categories of development do exist, primarily Integrated, Designated, Regional or State Significant Development. These categories are most often aligned with large and significant development proposals to which more in depth assessments are required.

Integrated Development is development that requires additional approvals from State Government Agencies. Designated Development is set out in Schedule 3 *Environmental Planning & Assessment Regulation 2021* (*EP&A Regulation*) and requires an Environmental Impact Assessment, whilst Regional and State Significant Development is dealt with by the Planning Minister of NSW. State Significant Development is set out in *State Environmental Planning Policy (Planning Systems) 2021.*

2. The Coolamon Shire Development Control Plan

A Development Control Plan (*or DCP*) is a source of information covering issues of legislative, administrative and technical aspects of development.

This DCP is known as ***Coolamon Shire Development Control Plan 2015*** pursuant to Division 6 *EP&A Act,* and subsequently applies to the whole of the Coolamon Shire Local Government Area.

The DCP supplements the provisions of the *Coolamon Local Environmental Plan 2011* (*the LEP*) by providing additional detail. The DCP should be read in conjunction with the LEP.

A Development Application must conform to the requirements of the LEP, including the zones that are prescribed and uses that can be undertaken in those zones. The LEP will prevail where there is an inconsistency with the DCP.

The DCP and the LEP are in addition to the provisions and requirement of any State Environmental Planning Policy (*SEPP*), Regional Strategies, contributions plans and other local environmental strategies.



Figure 2.1: Relationship of DCP to other plans

3. DCP Objectives

The overall objectives of the ***Coolamon Shire Development Control Plan 2015*** are to:-

- Support the *Coolamon LEP 2011* and associated strategic plans by providing detailed advice and guidance to owners and developers;
- Enhance the role of Coolamon Shire in the overall economic framework of the region;
- Encourage development which will strengthen the economic base of the Shire whilst retaining and protecting valued environmental and heritage assets;
- Recognise and enhance the role of Coolamon as the primary centre of the Shire for business, retail, commerce and community infrastructure; and
- Enhance the roles of the towns of Ganmain and Ardlethan, and the villages of Marrar, Matong and Beckom.

4. Commencement of the DCP

This plan was exhibited for public comment in accordance with the *EP&A Act* and *EP&A Regulation*. Council adopted this plan on the 25th June 2015.

Subsequent amendments to the plan are listed below in Part A (Section 8.3).

This plan came into force as of the **13th July 2015** (being the date specified in the public notice given in the Temora Independent newspaper in accordance with Clause 21 *EP&A Regulation*).

5. How to use the DCP

The Development Control Plan (DCP) is designed to assist with various types of issues that may relate to a development proposal.

Parts B-E contain separate controls to address specific development issues within the Shire. Each Part forms only a single component of the overall DCP and should not be read in isolation.

The following is an example of the DCP layout. Columns may include one or all of the following:-

Column 1

Objectives:
Each specific section has specific objectives, which describe what Council aims to achieve.

Controls:
These are used to measure the performance of a development in the development process. Some controls specify numerical standards, whilst others indicate what is expected or set out the criteria that should be satisfied.

It should be noted that compliance with specific controls will not necessarily guarantee approval of an application.

Column 2

***Explanatory Note*:**
Explanatory notes are provided throughout to provide assistance with the interpretation of specific controls.

Advisory Note:
Advisory Notes provide additional guidance where applicable.



Figure X: Image
Images may also be used to portray a particular development control.

6. Lodging a Development Application

6.1 Pre-lodgement meetings

Applicants are encouraged to seek advice from Council staff prior to lodging a development application. Meetings can be arranged by contacting Council via the details provided below.

6.2 Standard requirements

The *EP&A Regulation* requires the submission of specific documentation with all development applications. These are required by law. Missing or incomplete documentation can delay the processing of development applications.

In summary, these requirements may include but are not limited to:

i. The completion of a development application form;
ii. Architectural plans, consisting of a site plan, floor plan, elevations and a sectional plan;
iii. Structural plans (certified by a suitably qualified professional where required);
iv. A statement of environmental effects;

6.3 Guide to submitting a Development Application with Council

A guide to assist in the submission of a development application with Council is available on request from Council staff, or alternatively available on Council's website (www.coolamon.nsw.gov.au).

7. Further Information

Further information relating to the DCP, or any general planning, development or environmental related enquiries can be obtained during office hours by contacting Council staff via the details below:

SHIRE OFFICES
55 Cowabbie Street (Cnr Stinson Street)
COOLAMON NSW 2701

Office Hours: 8.30am to 5.00pm
Monday to Friday
(excl. public holidays)

TELEPHONE & FACSIMILE
T: 02 6930 1800
F: 02 6927 3168

ELECTRONIC
W: www.coolamon.nsw.gov.au
E: council@coolamon.nsw.gov.au

Please address all correspondence to:
The General Manager
PO Box 101
COOLAMON NSW 2701

8. Variations & Amendments

8.1 Objectives

The objectives of this section are to:

- Identify the process for amending the DCP and providing for public participation.
- Provide an update on amendments to the *Coolamon Shire Development Control Plan 2015*.
- Enable Council to vary a control in exceptional circumstances.

8.2 Variations to a DCP control

Council may give consent to an application that seeks to vary a development control. In these circumstances, Council must be satisfied that the proposal has merit, the variation can be justified, the objectives can still be achieved and that the completed development will be of equal or greater quality than the original control intended.

When circumstances warrant, Council may consent to an application which departs, to a minor extent, from the provisions of this DCP. In such cases, a written submission must be lodged with the development applications, outlining the variation, providing reasons why the variation is necessary or desirable, and setting out how the objectives of the particular provision are satisfied by the proposal.

Some of the relevant factors in determining whether a departure from this DCP is warranted include:

- Whether there will be any detrimental impact on the amenity of the existing and future residents
- Whether there will be any detrimental impact on the amenity of the area
- The nature and size of the departure
- The degree of compliance with other relevant requirements
- The circumstances in the case including whether the particular provision is unreasonable and/or unnecessary
- Priorities identified in a site analysis of being more important than what is being departed from
- Whether non-compliance will prejudice the objectives of the zone and the aims of this DCP

8.3 Amendments to the *Coolamon Shire Development Control Plan 2015*

Where Council resolves to prepare an amendment to the *Coolamon Shire Development Control Plan 2015* these must be exhibited for a minimum period of 28 days. Public notice must be given both upon Council's website and in the local newspaper, the Temora Independent. This notice is to indicate the details of the places, times and dates for the inspection of the draft amendments, and the period during which submissions may be made.

Copies of the draft amendments will be made available during the exhibition period free of charge.

Table 8.1 DCP Commencement & Amendment History

Purpose of Amendment	Part/Section Amended	Date Amendment Effective – (Public Notice under Clause 13 *EP&A Regulation 2021)*
Adoption by Council (Commencement)	Whole	13/7/2015
Amendment to DCP, Section 28, to include Industrial Development provisions	Section 28 Commercial and Industrial Development	20/2/2020
House Keeping and Introduction of R5 Large Lot Residential Controls	Various as applicable	16/11/2023

9. Disclaimer

Council provides the information contained in this DCP in good faith. In some cases this DCP only provides a summary of legislative provisions and technical codes. This DCP also includes information that does not strictly meet the requirements of the *EP&A Act*.

This DCP is for use by Council and the public. The DCP is aimed to allow participation by the public in the development of Council policy.

The information contained in this document is a guide to only some of the provisions that relate to development. Compliance with the requirements of this DCP will not necessarily mean that a development will be approved.

Always seek independent advice in relation to property purchases or investment decisions. This information should not be relied upon in reaching a decision to purchase a property.

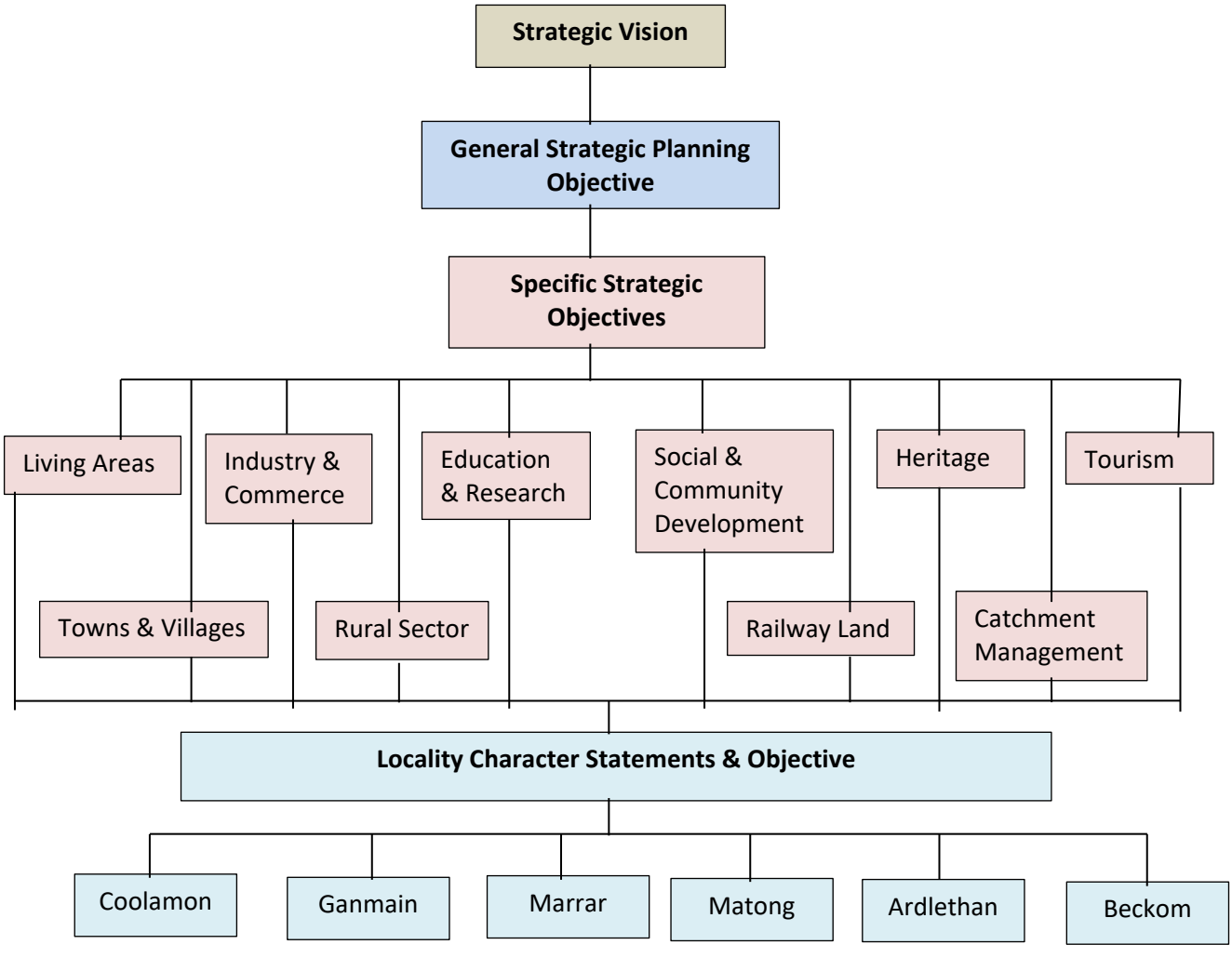


Above:
Sunrise at the Coolamon railway yards. (2013)

PART B: VISION STATEMENTS

The following statements are intended to guide development across the Shire and take into account the unique qualities and characteristics of the individual villages and localities. The statements themselves have been adapted from the *Strategic Plan 2010*, shaped throughout the planning and development of the *Coolamon Local Environmental Plan 2011*.

The relationship between the Vision and the Objectives is outlined in the following diagram:



10. Strategic Vision

The strategy seeks to promote and encourage sustainable development practices across every sector of the Shire's economy, and to stimulate civic, community and business opportunities which will enhance and protect the Shire's special features and characteristics.

Water, soils, minerals, land, native vegetation, scenery, landscape, cultural heritage and biological communities are recognised by the Council as valued resources requiring diligent and responsible management to ensure their survival in ways which will not disadvantage future generations.

The sustainability principle underpins the strategic objective of marshalling the land and other economic resources needed to provide jobs and commercial opportunities without risking adverse consequences for future generations.

11. General Strategic Planning Objectives

The strategy adopts the objectives of the current *2030 Riverina Murray Destination Management Plan* and of the current *Riverina Region 2022-2027 Natural Resource Action Plan* insofar as they relate to Coolamon Shire.

The strategy seeks to provide housing choice supplemented by suitable support facilities for the needs of a changing residential community.

Wherever and whenever possible, social health, informal security and support networks will be retained and strengthened, along with social and cultural infrastructure consistent with the needs of the Shire population.

12. Specific Strategic Objectives

12.1 Living areas : Urban Services

The Council, through this strategy, will encourage the more efficient utilisation of the existing housing and residential land stock in Coolamon Shire's towns and villages whilst making limited provision for development in new areas subject to compliance with adopted standards for subdivision and building design based on the principles of ecological sustainability.

Newcomers to the Shire and region will be encouraged to settle in Coolamon, Ganmain and Marrar as a preferred alternative to Wagga Wagga and other larger centres.

The strategy confirms the primacy of Coolamon town as the principle centre for higher order urban services and facilities in the Shire, whilst recognising the importance of encouraging growth in Ganmain, Ardlethan and Marrar.

12.2 Industry and Commerce

There are several industrial enterprises established in Coolamon and Council recognises their importance as sources of employment and as anchors in the local economy. The strategy seeks to

- Encourage the more efficient utilisation of existing industrial land resources and enterprises throughout the Shire.
- Where appropriate, identify localities in which special provisions designed to encourage development would apply from time to time.

12.3 Education and Research

The progress and enhancement of all the schools in Coolamon, Ganmain, Ardlethan, Marrar, Matong and Beckom will continue to be strongly supported. Ties with Charles Sturt University, the Agricultural Research Stations in Temora and Wagga Wagga, nearby colleges of TAFE, and other tertiary institutions will be strengthened whenever and wherever possible.

12.4 Social and Community Development

The Council will continue to create conditions conducive to the on-going enhancement of the Shire's social capital, and the development and strengthening of the Shire's social and community infrastructure and services.

The supply of appropriately designed housing and ancillary facilities for seniors and retirees who wish to remain in the Coolamon Shire within their chosen localities will continue to be strongly encouraged, as will the provision of services and facilities for young people – including young families.

12.5 The Towns and Villages

Plans and policies will ensure the continuing primacy of **Coolamon town** as the principle centre for higher order urban services and facilities in the Shire. In the town centre, the Urban Conservation Area focussed on Cowabbie Street will continue to be enhanced by means of quality urban design and sensitive heritage conservation with a view to helping the precinct to reach its full potential as a meeting place, community heart and tourist attraction.

In **Ganmain**, opportunities for encouraging new residential development and attracting jobs will be pursued. Support for unique local enterprises such as the sheaf hay industry, gourmet foods, and heritage based tourism will continue. The amenity of the main street precinct will be improved through quality urban design and landscaping. Additional land on the outskirts of the village will progressively be made available to cater for limited use as small-holdings and farmlets.

In **Marrar and Matong** the important role these two small villages play as focal points for community action will continue to be recognised. Consistent with the availability of utility services, they will be assisted to continue to provide housing alternatives whilst relying on the larger centres in the Shire for higher order facilities.

Ardlethan's role as the northern gateway to the Shire will be enhanced and strengthened. The attractiveness of the main street environment will continue to be upgraded through quality urban design and landscaping. The installation of a sewage treatment plant will be investigated. The planned improvement of the entrance to the town from the Newell Highway has already been completed, thereby encouraging new highway oriented development in that locality. In the adjoining village of **Beckom**, heritage qualities and community functions will continue to drive policy.

12.6 The Rural Sector

Across the broadacre farming areas of the Shire the stock of prime crop and pasture land will be protected whilst allowing for new agricultural enterprises and 'eco' and 'agri' tourism. Several small areas in the immediate proximity of Coolamon and Ganmain will be set aside for small-holdings and farmlets.

Farm-gate sales of local produce will be encouraged, as will the provision of 'farm-stay' and on-farm tourism attractions and visitor accommodation on working farms. New "value-adding" rural enterprises such as tours for special-interest groups (eg: those interested in grain harvesting or fat lamb production) will also be encouraged.

The Council seeks to retain the existing standard of 200ha as the minimum area for rural subdivisions carrying dwelling entitlements. This figure has been endorsed by the Council and the Shire community, and is consistent with research recently carried out by Council on this matter.

The 200ha minimum is seen by Council as a considered response to the need for achieving a balance between economic, social and environmental considerations relating to farmland preservation. Council's policy is based on its desire to achieve social and environmental objectives whilst not jeopardising the economic base that agriculture contributes to the Shire.

For the rural sector the specific planning objectives are to:

- Protect prime crop and pasture lands from inappropriate subdivision and development whilst recognising the need to cater for and encourage legitimate forms of agriculture and agri-related businesses including agri-tourism;
- Progressively develop and extend habitat corridors to link environmentally sensitive lands, TSR's and roadside vegetation as part of a shire-wide commitment to responsible management of native vegetation;
- Identify non-urban heritage sites and properties, encouraging owners to adopt good maintenance practices;
- Where appropriate, places of tourist interest to be promoted within the context of the Eastern Riverina Tourism Strategy.
- Ensure consistency of Shire development with relevant action plans and targets of the Murrumbidgee Catchment Management Blueprint.
- Enhance and beautify the main entry points to the Shire.



Right:
Agriculture is an important element to the economy of the Coolamon Shire. (2013)

12.7 Railway Land

The Council will engage with and seek partnerships with the relevant rail authorities with a view to reaching agreement on productive alternative uses for under-utilised or derelict railway land in Coolamon, Ganmain, Ardlethan, Matong, Marrar and Beckom.

12.8 Tourism

The strategy will seek to progressively improve the Shire's image and attractions as a distinct destination for day-trippers and tourist visiting the eastern Riverina.

The development of quality over-night accommodation, up-to-date and relevant sources of information, and quality service from local businesses will all be encouraged and facilitated where possible. The strategy recognises the important economic development potential associated with the links between tourism and heritage conservation. A flexible approach will be adopted in assessing applications for novel and imaginative development proposals, balancing environmental and conservation needs with the need to attract investment and create jobs. The Council will support and work with the 2030 Riverina Murray Destination Management Plan.

12.9 Heritage

The strategic aim is to continue to promote the Shire's cultural heritage through education, publicity and research. Owners of heritage properties and items will be encouraged to support Council's heritage policies and programmes. Strong policy support for local heritage programmes and initiatives will be offered.

12.10 Managing the Murrumbidgee Catchment

The Council will continue to work with the Riverina Local Land Services department on projects of mutual benefit.

12.11 The Environment

The Council will work closely with the NSW Office of Environment and Heritage and other relevant agencies to redress the loss of native vegetation throughout the Shire. Through the new LEP, the Council will ensure that further loss of sensitive habitats and threatened species is minimised and that remediation of areas degraded by excessive clearing, salinity or other adverse impacts is encouraged.

13. Locality Character Statements & Objectives

13.1 Ardlethan

History

Ardlethan is a rural service town located at the northern gateway to the Shire. Originally known as Rosebank, Ardlethan was proclaimed a village in 1908. Ardlethan is the birthplace of the Australian kelpie.



Figure 13.1:
Ardlethan – Home of the Kelpie. (2013)

Existing Character

Ardlethan is located at the junction of the Burley Griffin Way and the Newell highway. The Temora – Griffith rail corridor runs east west through the village.

The village centre is located in Ariah Street between Mirrool and Yithan Streets with grain silos opposite on the rail line.

Desired Future Character

Ardlethan is to remain a rural village but is strategic location at the northern gateway to the Shire provides an opportunity for highway orientated development (e.g. fuel and food stop, motel) at the new entrance from the Newell Highway.

Whilst the proximity of this infrastructure junction is positive, the fact that the main commercial precinct is located off the highway remains a challenge.

The village centre will continue to focus on Ariah Street with the streetscape and heritage elements to be retained. Any new development is to 'fit in' and be sympathetic to these heritage elements.

Housing will be consolidated in exiting residential areas however its expansion is limited by flooding and bushfire constraints, as well as road and stormwater infrastructure.

Rural residential development is limited to the west of the village.

Opportunities for the progressive rehabilitation of the disused Yithan tin mine (including possible alternate uses for the pit).

The Strategic Plan for Ardlethan is included in Figure 13.3.



Figure 13.2:
Ariah Street, Ardlethan (2014)

Figure 13.3: Ardlethan Strategic Plan



13.2 Beckom

History
Beckom is a village situated approximately 5 kms north-east of Ardlethan. The village is located on the bank of the Mirrool Creek and off the Newell Highway.

Beckom was proclaimed a village in 1909 following the arrival of the rail line.

Existing Character
Beckom is a small rural village. It provides a focal point for community activity via its school, churches and community hall.

The Temora – Griffith rail corridor runs through the village where the village previously played a role as a rail head for grain harvesting. The intermittently used grain silos remain the tallest built structures in the landscape.

The village centre is located in Ariah Street between Moore and Deakin Streets, with the village park located opposite a feature used by travellers of the Newell Highway.

Desired Future Character
Beckom is to remain a rural village and community focal point.

Heritage buildings and the village centre streetscape are to be retained. Any new development is to 'fit in' and be sympathetic to these heritage elements.

Housing will be consolidated in exiting residential areas.

The Strategic Plan for Beckom is included in Figure 13.7.



Figure 13.4:
Beckom Hotel (2014)

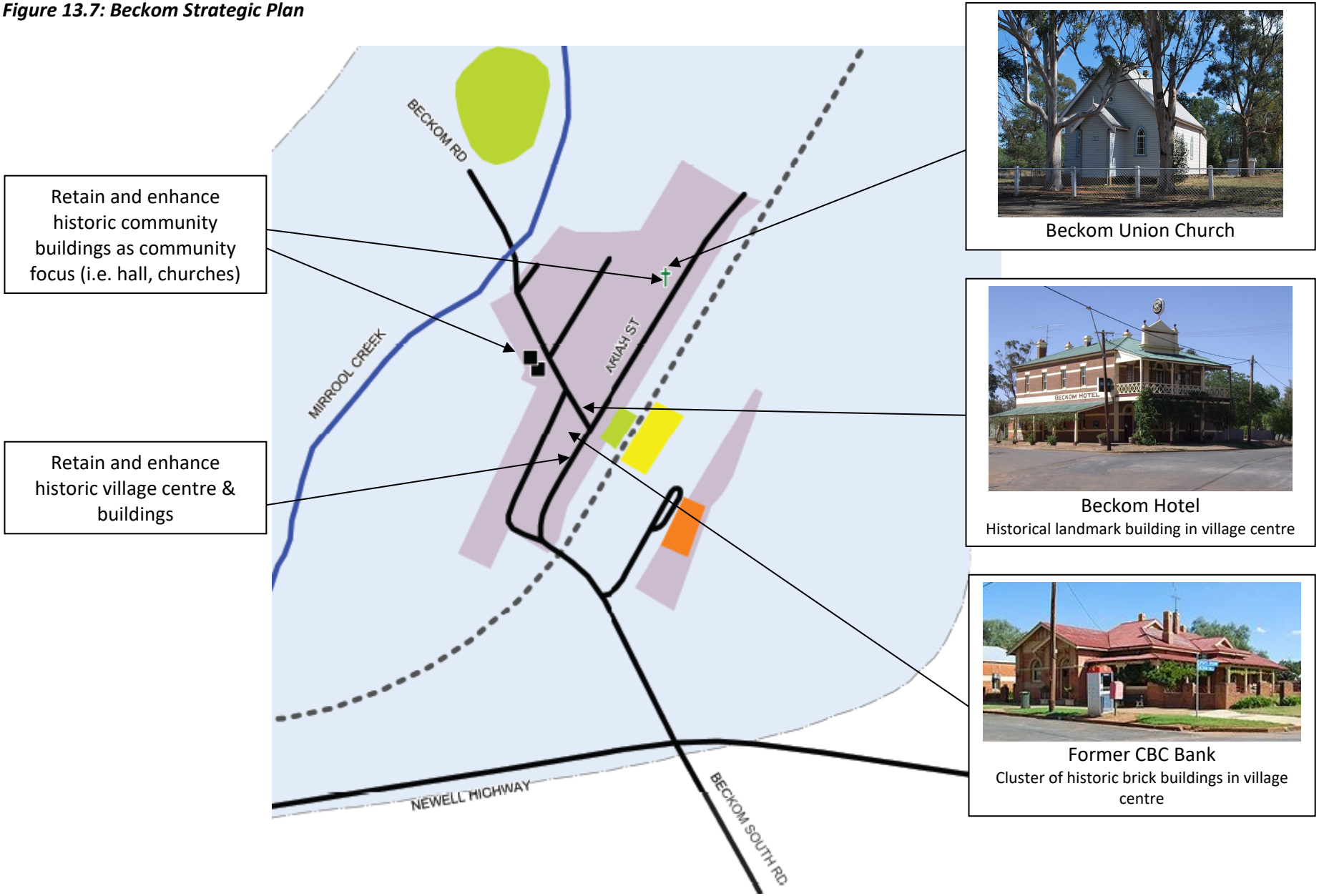


Figure 13.5:
Former CBC Bank (2014)



Figure 13.6:
Mirrool Creek. (2006)

Figure 13.7: Beckom Strategic Plan



13.3 Coolamon

History
Coolamon was first settled by Europeans in the 1870's as the area opened up to agricultural expansion into the Riverina. Following the arrival of the railway in February 1881 Coolamon was gazetted as a town in October 1881. The Shire Council was established in 1906 as the town grew into a rural service centre.

Existing Character
Coolamon is a rural service centre for the surrounding agricultural community and smaller villages. It is the principal centre for higher order urban services and facilities within the Shire including health services, schools and sporting facilities.

The town is at the junction of the Canola Way and both the Coolamon and Ardlethan Roads. The former links Wagga and the Newell Highway at Ardlethan, whilst the Canola Way links Junee to the east with the Newell Highway at Grong Grong to the west.

The Junee – Griffith rail corridor runs through the town. The town plays a role as a rail head for grain harvesting.

The town business centre is focused on Cowabbie Street between Stinson and Loughnan Streets. This area combines a heritage precinct on a sloping main street providing a unique and attractive view corridor from the southern approach.

Desired Future Character
Coolamon is to remain as the principal town settlement in the Shire, promoted as a rural living alternative to the nearby city of Wagga Wagga.

Residential development is primarily to be consolidated within the town area with additional rural residential areas to the north east and south west.

The new Light Industrial along Canola Way and the rail corridor area will be the focus of light industrial land uses and used to encourage appropriate forms of industry to the town.

The town centre and business precinct is located in Cowabbie Street North (refer Figure 28.1) and is to remain as the principal retail and commercial focus for both the town itself and the Shire as a whole.

The Cowabbie Street area south of the rail line is to be a civic and health precinct reflective of the community facilities already located in this area. Health care facilities including dementia and retirement housing needs are to be strengthened and expanded in this precinct. A site for future multi-purpose civic centre is to be identified.

Heritage buildings and streetscape (especially Cowabbie Street) are to be retained throughout the town and any new development is to 'fit in' and be sympathetic to these heritage assets.



Figure 13.8:
Hotel Coolamon (2010)

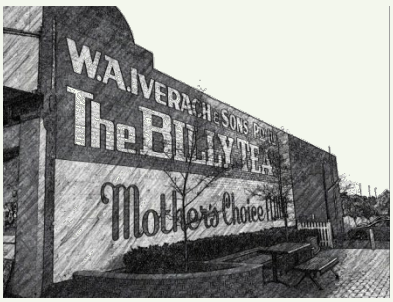


Figure 13.9:
"Billy Tea" Mural (2014)



Figure 13.10:
Up-To-Date Store, Coolamon (2008)

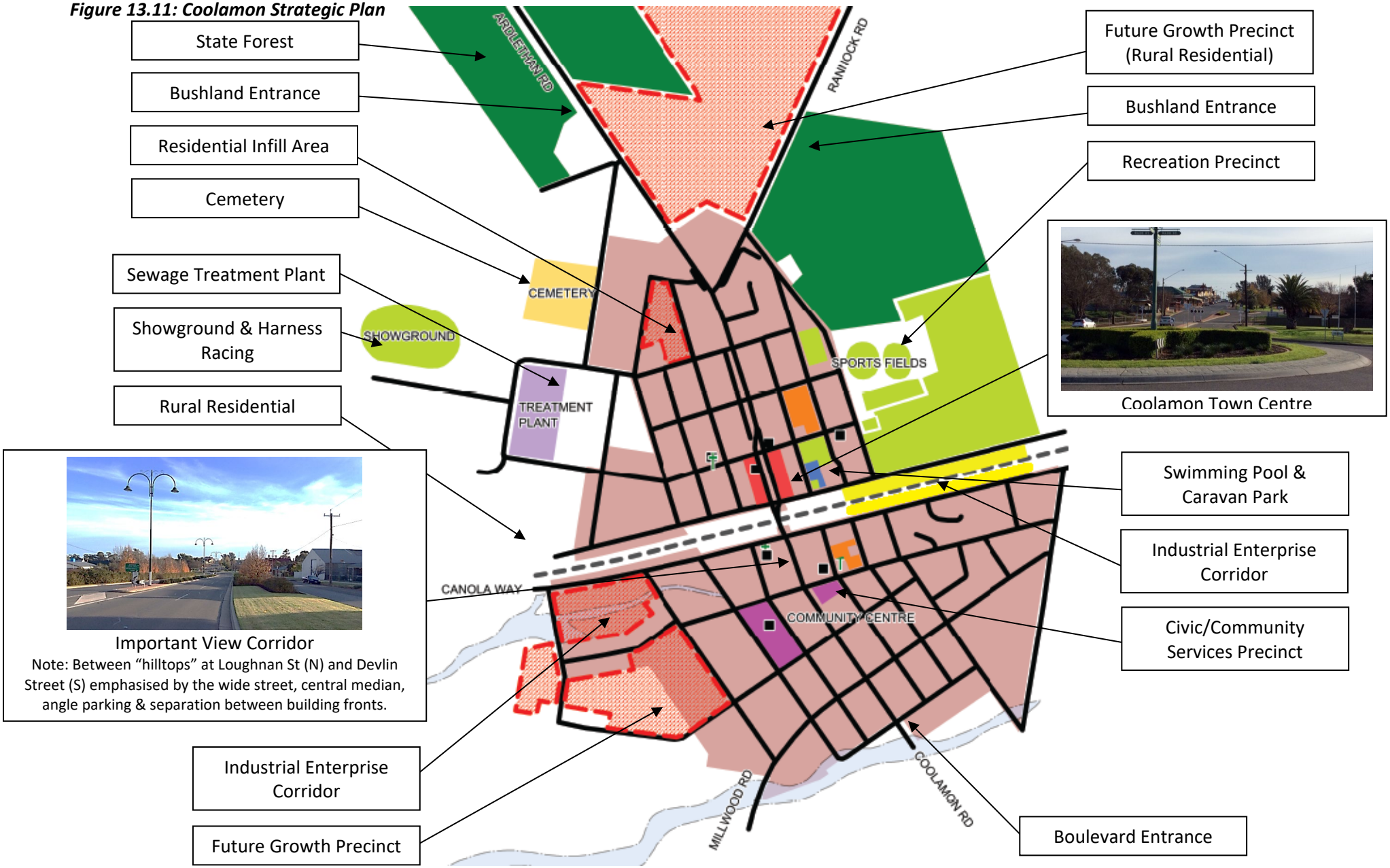
A green corridor around the urban boundary will provide a visual delineation between the town itself and the surrounding agricultural activities.

The Strategic Plan for Coolamon is included in Figure 13.11.



Figure 13.11:
An aerial view of Cowabbie Street looking South. (2013)

Figure 13.11: Coolamon Strategic Plan



13.4 Ganmain

History
Ganmain was first known as Boggy Creek and settled in the 1880's. Its status as a village was proclaimed in 1894.

Ganmain is regarded as a centre for sheaf hay and chaff production for the race horse industry.

Existing Character
Ganmain is located on the main east west road link (Canola Way) and straddles both the Junee- Griffith rail line and Boggy Creek. The main entrance from the east brings visitors through the Ganmain State Forest.

Ganmain remains a rural village to the surrounding agricultural community providing a focal point for community activity via its school, churches and community hall.

The grain silos dominate the village landscape reflective of its role as a rail head for gran harvesting.

The village centre is located in Ford Street between Langham and Lakes Streets.

Desired Future Character
Ganmain is to remain a rural village and community focal point.

Housing is to be consolidated in the existing village zone commensurate with sewer availability. Additional rural residential allotments are to be located to the south and east of the village.

Landscaping beautification will be focused on the Boggy Creek environs.

The village centre will continue to be focused on Ford Street. Heritage buildings and the village centre streetscape are to be retained. Any new development is to 'fit in' and be sympathetic to these heritage elements.



Figure 13.12:
Haystacks at Ganmain. (2006)



Figure 13.12:
Waterview Street shopfront incorporating traditional verandah and signage. (2014)

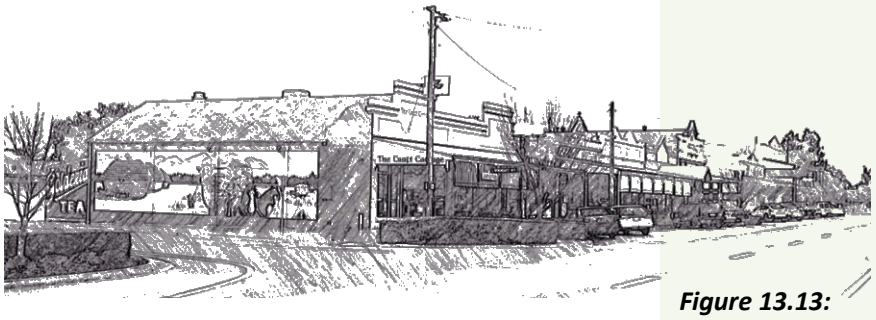


Figure 13.13:
Ford Street, Ganmain

The Strategic Plan for Ganmain is included in Figure 13.14.

Figure 13.14: Ganmain Strategic Plan



13.5 Marrar

History
Marrar is a small village located to the east of Coolamon on the Canola Way. The village is on the southern side of the Junee – Griffith rail line

Marrar was proclaimed a village in 1904 following the arrival of the rail line.

Existing Character
Marrar is a small rural village and provides a focal point for social and community activity via its school, churches and sports ground.

The Junee – Griffith rail corridor provides the northern boundary of the settlement. Like other villages in the Shire, Marrar is a rail head for grain harvesting. Of significance to Marrar however is the local bulk grain export industry which relies on rail access to enable efficient movement of grain to seaports along the eastern seaboard.

The village centre is located in York Street between See and Wood Streets.

Desired Future Character
Marrar is to remain a rural village and community focal point.

Remaining heritage buildings and the village centre streetscape are to be retained. Any new development is to 'fit in' and be sympathetic to these heritage elements.

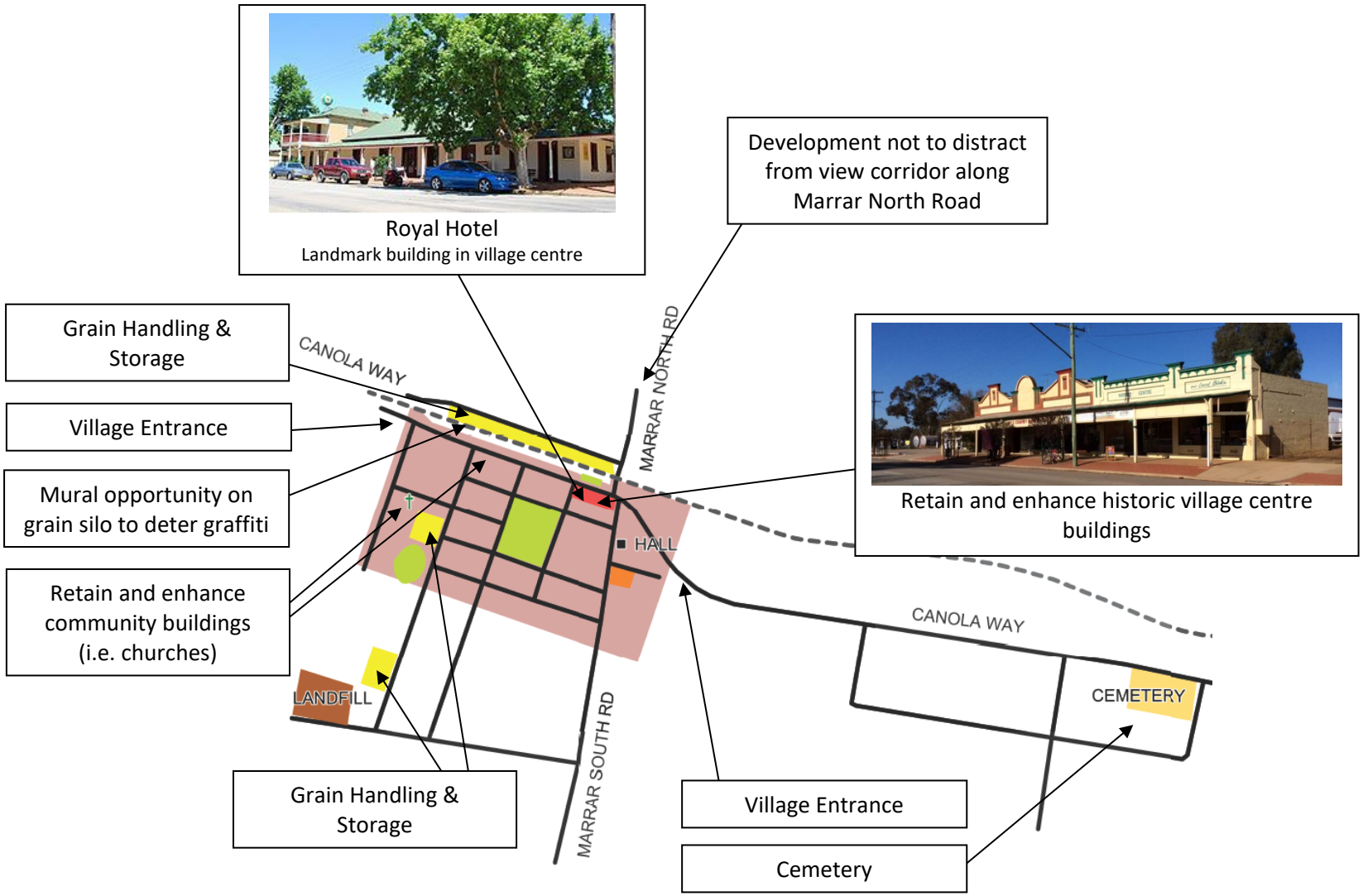


Figure 13.15:
Royal Hotel, Marrar (2008)

Housing will be consolidated into the exiting residential areas. The village's proximity to Wagga Wagga also provides an opportunity to promote Marrar as an alternative to city living.

The Strategic Plan for Marrar is included in Figure 13.16.

Figure 13.16: Marrar Strategic Plan



13.6 Matong

History
Matong is a small village located to the west of Ganmain. The village is on the southern side of the Junee – Griffith rail line

Matong was proclaimed a village in 1904 following the arrival of the rail line.

Existing Character
Matong is a small rural village and provides a focal point for social and community activity via its village park, school, churches and sports ground.

The Junee – Griffith rail corridor provides the northern boundary of the settlement and like other villages in the Shire is a rail head for grain harvesting.

The village centre is located in Matong Street between Olive and Wood Streets.

Desired Future Character
Matong is to remain a rural village and community focal point.

Remaining heritage buildings and the village centre streetscape are to be retained and enhanced. Any new development is to 'fit in' and be sympathetic to these heritage elements.

Housing will be consolidated in exiting residential areas.



Figure 13.17:
Matong Street, Matong (2014)



Figure 13.18:
Matong Silos, Matong (2014)

The Strategic Plan for Matong is included in Figure 13.19.

Figure 13.19: Matong Strategic Plan



PART C: GENERAL DEVELOPMENT CONTROLS

14. Notification of Developments

Public participation is an important component of the development process. This process allows the public to provide submissions that are considered by Council when determining an application.

Council recognises that the majority of development will consist of development types relevant to the zone whilst also being consistent with existing development. For example, it should be expected that a vacant parcel of land within the RU5 – Village zone will most likely be developed into a property comprising a single residential dwelling, a shed/garage (with an eave height of 2.7m or less) and in some instances a swimming pool.

In part, this section aims to capture those development proposals that do not align with this expectation, but are nevertheless permitted within a particular zone by Council's Local Environmental Plan.

14.1 Objectives:

The objectives of these controls are to:

- Ensure notification of any development is undertaken if required by legislation.
- Provide for public participation in the development application decision making process.
- Identify development applications that will be notified and/or advertised and those persons that will be notified.
- Detail the form in which notification and/or advertisement will take place.
- Specify circumstances where notification and advertising of applications is not required.
- Facilitate the efficient processing of applications without unreasonably compromising the opportunity for public participation.

14.2 Application not notified:

The following applications will not be notified:

- Development that is consistent with the primary objective of the zone
- Exempt development
- Complying development
- Any application deemed by Council to be of a minor nature with little potential for adverse impacts

14.3 Application of Controls:

Notification will apply to the following types of development:

- Development proposals that are likely to have a significant adverse effect on an adjoining or nearby parcel of land or building by way of:
  - Views to and from the surrounding land and buildings.
  - Potential overshadowing and loss of solar access.
  - Potential impact on privacy of surrounding land and buildings.
  - Potential noise, odour, dust, vibration, light spill or other emissions of the like being emitted to the surrounding land and buildings.
  - Environmental amenity.
  - The likely visual impact of the proposed development upon a streetscape, and/or views to and across a site, including consideration of bulk and scale.
  - Potential traffic generation and/or parking requirements.
  - Drainage.
  - Social, environmental and economic sustainability.
  - Any other potential impact that may be cause for enjoyment of land to be compromised.
  - Houses in village zones seeking to vary setback or height restrictions
  - Development in Heritage Conservation Area forward of the existing building line

14.4 Who will be notified?

Upon receipt of an application, Council will provide written notice to the owner of an adjoining parcel of land or building, and to an owner of any nearby land or building if the proposed development triggers any of the matters identified in 14.3 (above). Refer Figure 14.1 below.

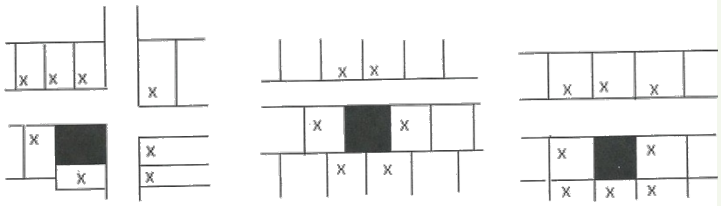


Figure 14.1

Council officers will be able to determine who may be detrimentally affected in terms of the above listed matters for consideration. The Council may also broaden the extent of notification following inspection of the development site, or if there is any potential for wider ranging impacts (e.g. traffic generation or noise).

If a person becomes aware of a Development Application without receiving any direct notification they still may participate in the process and make a submission.

***Advisory Note*:**
The *State Environmental Planning Policy (Exempt & Complying Development Codes) 2008* does not require development that fits the criteria of being either exempt or complying to be notified. In some circumstances the SEPP may require a developer or applicant to notify neighbours and/or adjoining landholders prior to the commencement of work. In these instances, Council is not responsible for ensuring the developer or applicant follows through with this commitment.

14.5 Form of Notification

Council will notify all parties identified in 14.4 (above) in writing, providing as a minimum the name of the applicant, and a description of the proposal. Further information may be included at the discretion of Council staff, however any additional information provided is to be done so with a view to protecting the privacy of any current or future occupant. Copies of the site plan, any elevations and the statement of environmental effects will be made available at Council and on Council's website.

Should the proposal fit into any of the categories as listed below, Council will notify the wider community via an advertisement placed in the *Temora Independent* newspaper. These include:

- Non-residential proposals located near or adjacent to residential areas.
- Proposals that consist of the altering or demolition of a Heritage Item.
- Multi-unit residential developments.
- Development for purposes other than those listed above which, in the opinion of the Council, requires public comment.

14.6 Notification Period

Any Development Application required by this part to be notified will be done so for a period of at least 14 days. This period may be lengthened at the discretion of Council and/or Council staff if the type, size or scale of proposal is inconsistent with the nature or character of the surrounding areas and its predominant use.

If the Development Application is for a Designated Development and involves an Environmental Impact Statement the notification period will be a minimum of 28 days.

14.7 Submissions

Any submissions made must be done so by the closing date of the notification period. Submissions received by Council after this date may not be considered.

Written submissions cannot remain confidential and may be:

- Referred to the applicant as they may be used to assist in negotiations with the owner/applicant of the proposal,
- The subject of Freedom of Information requests (under the *Government Information (Public Access) Act 2009*), and
- Included in Council business papers.

Where a submission is received, Council will respond following the determination of the application. Any concerns or aspects that may have been raised within the submission will be addressed in Council's response.

14.8 Amendments to a Development Application

If a development application is amended following notification, Council will re-notify the proposal with full details of the amendment as required.

14.9 Modification of an approval

If a Development Consent is modified following approval, Council will re-notify the proposal with full details of the amendment as required.



Left:
Coolamon silos at dusk. (2013)

15. General Housing & Ancillary Structures

General Housing & Ancillary Structures relate to the most common forms of residential development; typically single dwellings, sheds and swimming pools. Ancillary development can also include other minor development types such as fencing.

The development types identified within this section are those that should be ordinarily expected within residential areas or within close proximity to a residential use (such as a farmhouse or rural residential dwelling). Likewise, this section also identifies the minimum standard for other key development standards such as utility provision, privacy and setback, among others.

15.1 Objectives

The objectives of these controls are to:

- To ensure development of this kind is compatible with surrounding uses and streetscapes.
- Outline generic development types that should ordinarily be expected within residential areas or within close proximity to a residential use (such as a farm house).
- To ensure new developments are serviced appropriately without burdening existing development.
- To ensure new developments have sufficient access to utility infrastructure.
- To ensure new developments do not adversely impact existing service and utility infrastructure.

15.2 Application of Controls

These controls apply to the following types of development:

- All residential development and ancillary development across all zones unless otherwise noted.

15.3 Building Setback

Development on residential allotments shall observe the following setbacks:

RU5 – Village

- Front – 8.0m
- Side – 0.9m
- Rear – Development is permitted to the rear boundary; however garages, carports and the like that are provided with direct access from a rear lane must observe a rear setback of 1.0m.

NOTE: In the case of corner allotments, the minimum setback permitted from the secondary street frontage is 3m. Ancillary structures such as sheds and garages may be permitted closer to the secondary street setback in instances where they are constructed in the rear yard and consistent with any corresponding street setback line (see **Figure 15.1**).

R5 - Large Lot Residential

- Front – 20.0m
- Side – 10.0m
- Rear – 10.0m

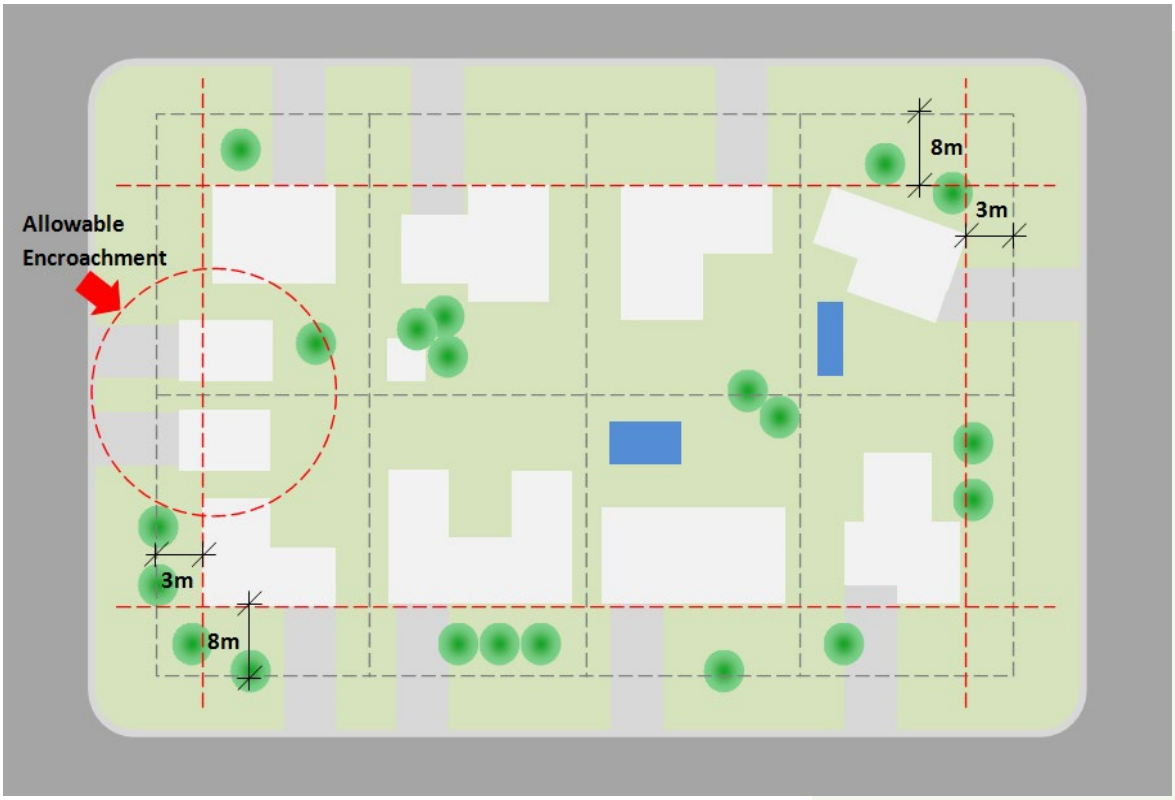


Figure 15.1
General setback scenario and options within areas zoned RU5 – Village.

RU4 – Primary Production Small Lots

- Front – 20.0m
- Side – 10.0m
- Rear – 10.0m

RU1 – Primary Production

- Front – 20.0m
- Side – 10.0m
- Rear – 10.0m

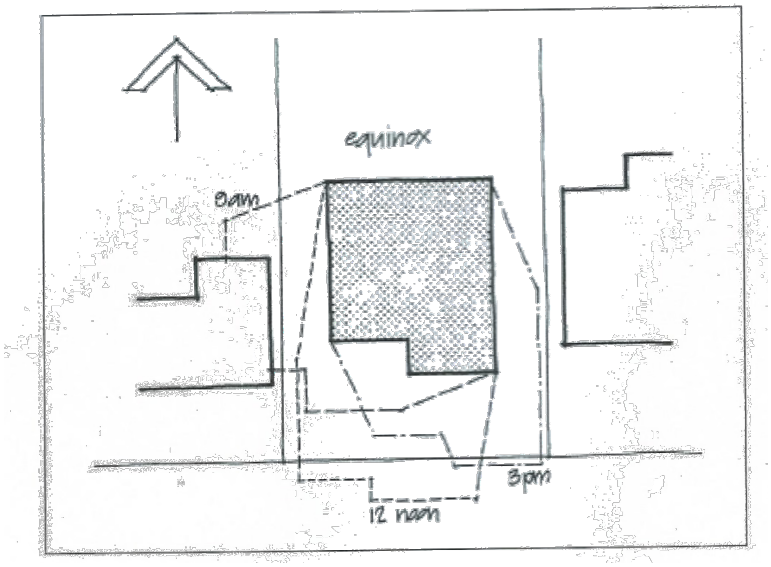
Minor variations to the minimum setback distances prescribed in this section may be considered by Council on individual merit and onsite conditions. Additional variations may also be considered subject to compliance with the Building Code of Australia. In considering any variations Council will have regard to:

- The nature, scale and function of new buildings
- The general amenity and character of the area
- The maximisation of sight distances for drivers using the road, including visibility of points of access to the road, and pedestrians utilising the footpath area.
- Any possible need to alter the road alignment in future.

15.4 Solar Access

To ensure reasonable solar access is maintained, the following controls apply:

- For any adjacent dwellings that have north facing living areas, maintain 4 hours sunlight access to the windows of the living areas between 9am and 3pm in mid-winter (June 22).
- Maintain solar access to 50% of the private open space of adjacent dwellings for a minimum of 4 hours between 9am and 3pm in mid-winter (June 22).



Advisory Note:

The siting of dwellings to optimise solar access to the main living areas of the home not only provides a more enjoyable living environment, but also reduces demands on artificial lighting, heating and cooling with consequent financial and environmental benefits.

Figure 15.4 (left):

Shadows at 9am, 12 noon & 3pm

15.5 Privacy

- Single storey development meeting the prescribed setback distances in 15.3 do not require specific privacy controls.
- Development of more than one storey should locate and size windows to habitable rooms to avoid facing onto windows, balconies or courtyards of adjoining dwellings.

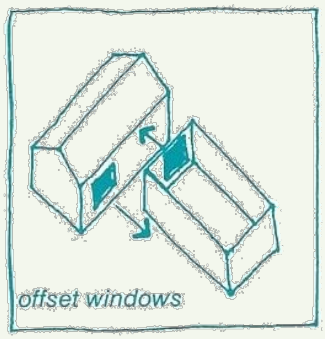


Figure 15.5 (above):

Offset windows for privacy

15.6 Fences

Fences are an important element for providing privacy. Poorly designed fences can however detrimentally impact upon streetscapes, interfere with traffic vision and limit passive surveillance. The following controls aim to balance these factors:

<u>Front Fences</u>

- Fences and gates forward of the building line in RU5 – Village zoned areas may be no higher than:
  - 0.9m for fences of "closed type" construction.
  - 1.2m for fences of "open type" construction.

<u>Rear Fences</u>

- A maximum allowable height of 1.8m regardless of construction type.

Explanatory Note:

"Open & Closed Type" Fences refer to the material used to construct a particular fence or gate.

An "Open Type" fence generally refers to a material that is either perforated or non-continuous in its construction, for example timber pickets, wire netting or pool fencing.

A "Closed Type" fence material is generally solid in construction and appearance, for example a brick wall or corrugated iron fence.



Figure 15.6 (above):
An example of closed type fence (left) and an open type fence (right).

Side Fences

- Height of side fences forward of the building line:
  - 0.9m for fences of "closed type" construction.
  - 1.2m for fences of "open type" construction.
- Height of side fences behind the building line:
  - 1.8m regardless of construction type.
- A height transition, of no longer than 3m is allowable forward of the building line.

Fencing of Vacant Land

- Vacant land shall be fenced to cater for future development, and must therefore comply with this section.



Figure 15.7:
Garages should not dominate the streetscape (top row). The bottom row demonstrates a more appropriate solution.

15.7 Carports & Garages

Carports and garages should not dominant the front façade of the dwelling. To ensure this does not occur, carports and garages:

- Are not permitted within the building setback area.
- Should not be located in front of the dwelling if <4,000m² lot.
  - If in front of the dwelling, the carport/garage must be constructed to appear like part of the dwelling (for example, pitched roof and/or brick columns and/or cladding to match dwelling.

15.8 Swimming Pools

Swimming pools can provide an excellent lifestyle addition to your home. Equally so, swimming pools can create amenity issues for surrounding landholders through issues such as pump noise, user noise and/or lighting. Earthworks such as excavations can also impact upon neighbouring properties, with ground stability and sub-surface drainage issues being of primary concern.

Advisory Note:
Owners are advised to contact Goldenfields Water County Council or Riverina Water prior to filling swimming pools or spas to ensure that water restrictions are not in place.

The following standards have therefore been put in place by Council to ensure minimal impact on adjoining land users:

- Where visible from a public place or road, details of screening are to be provided as part of the application.
- Any associated retaining walls or decks are not to exceed 1.0m above the natural surface level.
- Pool pump enclosure to be placed greater than 15 metres from a habitable room in a dwelling on adjoining property or within a soundproof enclosure.

NOTE: Reference is made to Council's *Swimming Pool Safety Policy*. The policy details the responsibilities of both Council and swimming pool owners with regards to swimming pool safety, as well as informing prospective pool owners as to when Council consent is required to install a swimming pool.

Advisory Note:
In accordance with the *Swimming Pools Act* 1992 and Council's *Swimming Pool Safety Policy*, swimming pools are subject to the following mandatory inspections:
- At least once every 3 years for backyard swimming pools and spas.
- At the time of sale, leasing or renting of premises with a swimming pool or spa.
- Annually for motels and public swimming pools and spas.

15.9 Dual Occupancy

Refer to Section 26 regarding multi dwelling developments for any residential development containing more than 1 occupancy.

15.10 Services & Utilities

The following services and utilities are to be provided to all new residential developments:

Electricity

- Electricity to a low-voltage standard as approved by the relevant energy authority. Where a grid connection is not available, stand-alone solar systems may be permitted following a thorough assessment by Council.

Water

- Potable water, connected to a reticulated mains supply where available.
- Where a reticulated supply is not available, at least 45,000 litres (approximately 10,000 gallons) storage shall be provided for domestic purposes.
  - A minimum of 20,000 litres shall be reserved for firefighting purposes. Such supply may be part of the 45,000 litres
  - For the purposes of the foregoing, "firefighting purposes" is defined as being for the protection of the homestead/dwelling and adjoining structures, (e.g. garage, etc).
  - Where the number and location of structures warrants, additional storage capacity may be required (e.g. Multiple Occupancy).
  - Where in-ground/below ground storage is provided, access for firefighting vehicles shall be provided to enable drafting of water into a firefighting unit with said units own drafting equipment. In this regard, the standard suction hose is usually 6m in length.

Advisory Note:
Useful contact details for service and utility providers:

Essential Energy:
132 391

Goldenfields Water:
(02) 6977 3200

Riverina Water:
(02) 69220608

Telstra:
132 200

Coolamon Shire Council:
(02) 6930 1800

- Where above ground storage is provided:
  - The outlet for domestic supplies shall be located at a level above that of the 10,000 litres served for firefighting purposes.
  - The outlet for firefighting purposes shall be fitted with a stop valve and standard 65mm storz outlet.
  - The outlet above shall be located so that access for firefighting units be provided, i.e. Directly where there is vehicle access to the outlet or via plumbing where such direct access is not possible. Such access should be on the opposite side to the dwelling or building.

Telecommunications

- Provision of telephone services to a standard approved by a recognised telecommunications carrier.

Access

- An all-weather access that connects Council's road network to the boundary of the subject property. All access design and construction is subject to approval by Council's Engineering Department.

Sewage

- Adequate means of sewage disposal (refer to **section 26 – Sewage Management)**.

Explanatory Note

Even though advances in technology have made mobile telephone and internet technology more accessible, fixed networks are still considered to be more reliable. For this reason Council still require the adequate provision of fixed telephone services to most developments.

15.11 Flood Liable Land

Clause 6.5 of the *Coolamon LEP 2011* states that the consent of Council is required for the erection of a building or the carrying out of work on land identified as flood liable land.

Dwellings may only be erected upon flood liable land subject to the following:

- The finished floor level of any habitable room must observe a minimum height of 500mm above the last known 1:100 year flood level.
- Flood free vehicle access from Council's road network to the dwelling.
- Where flood free vehicle access is not possible, the development must be able to achieve safe wading criteria (refer Figure 15.8 from *NSW Floodplain Development Manual*).
- A connection to a reticulated sewerage network must be available. If such a network is not available, an Aerated Wastewater Treatment System (AWTS) may be considered by Council following a thorough assessment of the proposal. An AWTS must meet the criteria identified under **Section 20 – Sewage Management**.

Any proposed ancillary structure must not:

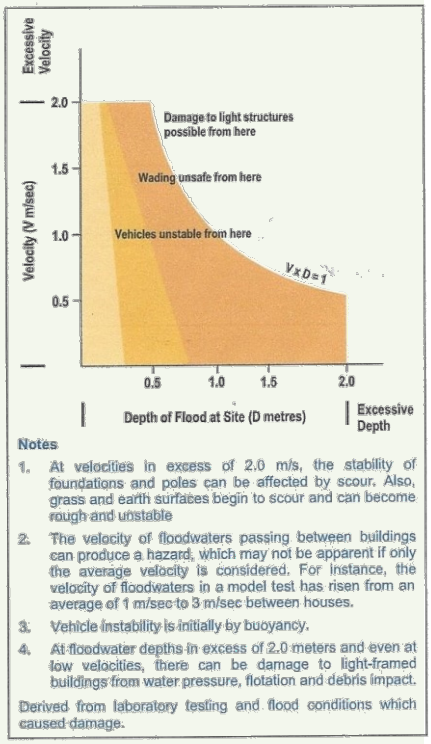


Figure 15.8:
Wading depth

- Cause the path or storage patterns of floodwaters to be altered in a manner that detrimentally affects existing properties or infrastructure**.**

15.12 Bushfire Prone Land

Dwellings and ancillary structures proposed upon land identified as being bushfire prone shall comply with:

- Section 4.14 *EP&A Act*.
- *Planning for Bushfire Protection*, as published by the NSW Rural Fire Service.
- *Australian Standard 3959 – 2009: Construction of Buildings in bushfire-prone areas*.

16. Heritage & Conservation

Heritage items and conservation areas have special qualities that make them significant. Development needs to take particular care to ensure that the particular themes, features or characteristics that make the item or area significant are not compromised by change. This can include:

- Retaining heritage items and encouraging changes to occur away from significant elements or sections of heritage items.
- Ensuring new work has suitable bulk, scale, proportions and detailing so that it does not dominate or compromise the ability to interpret heritage items (including adjacent or nearby items) or the heritage conservation area.
- Encouraging suitable materials.

Heritage items are mostly buildings but can include structures, places or relics. Other types of items, structures or environmental features may also be considered to have heritage significance. A heritage listing applies to the whole property as the heritage significance of the item is normally more than the front façade. The controls for heritage items are included in this section.

16.1 Objectives

The objectives of these controls are to:

- To conserve items and places of heritage significance throughout the Shire in accordance with the principles of the Burra Charter.
- To facilitate the implementation of the objectives and provisions relating to heritage conservation, which are contained within the Local Environmental Plan.
- Provide guidance and the relevant development controls to assist with the conservation of individual heritage items within Coolamon Shire.
- Provide guidance and specify those development controls that apply to the Coolamon Heritage Conservation Area.

16.2 The Burra Charter

The Burra Charter is a document which was developed in 1999 by the Australian Chapter of the International Council on Monuments and Sites (ICOMOS) for the conservation of places of cultural significance. It is a statement of conservation principles which are applicable to Australia designed to provide sound guidance on heritage assessment and heritage management practices.

Coolamon Shire Council adopts the principles of the Burra Charter in this plan. Any development application and supporting heritage documentation must be prepared in accordance with the Burra Charter principles. Council will apply these principles in assessing any proposed development upon land containing a heritage item or within a heritage conservation area or any land adjacent to a heritage item or conservation area.

The following are Burra Charter definitions of common conservation terminologies/processes:

Place means site, area, land, landscape, building or other works, group of buildings or other works, and may include components, context, spaces and views.

Fabric means all the physical material of the place including components, fixtures, contents and objects.

Conservation means all the processes of looking after a place so as to attain its significance.

Preservation means maintaining the fabric of a place in its existing state and preventing deterioration.

Restoration means returning the existing fabric of a place to a known earlier state by removing, adding on or re-assembling existing components without the introduction of new material into the fabric.

Reconstruction involves introducing material to replace missing elements returning a place as nearly as possible to a known earlier state. Complete rebuilding on the same or another site is unacceptable except only as a last resort.

Adaptation means modifying a place to suit the existing use or proposed compatible uses. A compatible use means a use which involves no change to the culturally significant fabric, or changes which require minimal impact.

Maintenance means the continuous protective care of the fabric and the setting of a place, and is to be distinguished from repair. Repair involves restoration or reconstruction.

Relocation A building or work should remain in its historical location. Moving a part or all of a building is unacceptable unless this is the sole means of ensuring its survival.

16.3 Heritage Advisor

Council offers a free heritage advisor service and can assist with preliminary advice on proposals affecting heritage items and sites within Conservation Areas.

All development applications received by the Council to carry out development within a Conservation Area or in relation to a heritage item identified within the Coolamon LEP 2011 will be referred to the Heritage Advisor for review and advice prior to the consideration of the application.

16.4 Local Heritage Grants

The Coolamon Shire Local Heritage Assistance Fund provides support for works that will help to conserve the Shire's heritage. The fund is available to support works that will conserve existing character, restore buildings or enhance the streetscape.

For more information regarding the fund, including eligibility rules, contact Council.

16.5 Alterations and/or Additions to Existing Heritage Items

Undertaking alteration and additions to a heritage item is very important and should be carried out in such a manner that respects the significance of the building. A sympathetic alteration or addition will blend in with the building and the following principles should be given particular attention when considering alterations and additions to heritage items.

Specific objectives for alterations and additions to places of heritage significance and importance are:

- Protect heritage significance by minimising impacts on the significant elements of heritage items.
- Encourage alterations and additions which are sympathetic to the building's significant features and which will not compromise heritage significance.
- Ensure that alterations and additions respect the scale, form and massing of the existing building.

Specific development controls for alterations and additions to places of heritage significance and importance are:

- Destruction of important elements such as chimneys, windows and gables will not be permitted.
- Original details such as panelling, ceilings, skirtings, architraves or remaining door and window furniture, must be retained.
- Fire safety upgrading of buildings must be undertaken in accordance with the NSW Heritage Office manual titled "Heritage on Fire".
- Extensions or alterations to heritage items should not project beyond the front building line. Additionally, changes to the front elevation should be avoided. Efforts should be made to locate new work to the rear of, or behind the original building section.
- Side additions should not compromise the ability for driveway access to the rear of the block.
- Front and side setbacks should be typical of the spacing between buildings located in the vicinity of the new development.

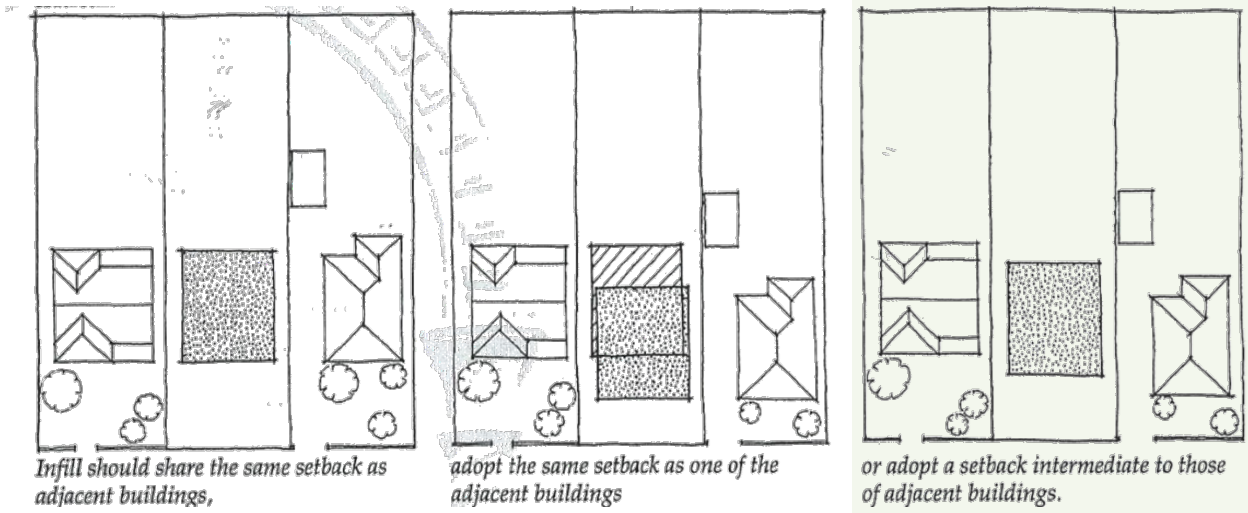


Figure 16.1
Acceptable setback patterns of infill development.

- Design new work to respect the scale, form, massing and style of the existing building, and not visually dominate the original building.

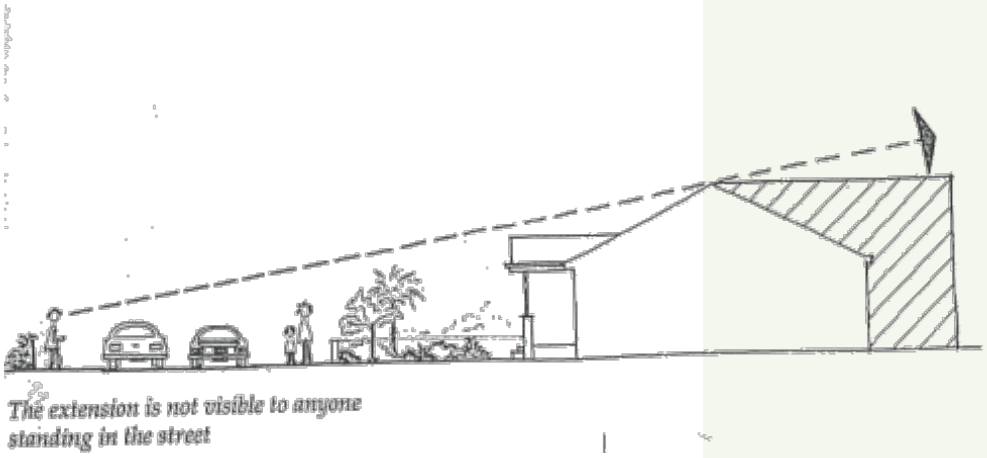


Figure 16.2
Non-visible rooflines in infill areas are an acceptable solution.

- Extensions or additions to a building on a heritage listed site should only occur at the rear of the existing building or where not visible from the street.
- The original roof line or characteristic roof elements are to remain identifiable and not be dwarfed by the new works. Complement the details and materials of the original roof including ridge height and slopes without compromising the ability to interpret the original form.
- In relation to roofing:
  - Original roof material must be matched in material and colour.
  - Skillion roofs of additions must be pitched rather than flat and should be of a depth which is secondary to that of the main building.
  - Roof pitch of additions must match existing.
  - Roofing must maintain the scale and massing of the existing roof form.

- All roof openings must be located on the rear pitch of the roof and not be visible from the street.
- Building bulk and large expanses of solid masonry should be avoided through the use of recesses, bays, vertical elements and/or the use of additional surface treatments/materials.
- Extensions or alterations must retain existing materials and finishes and use compatible materials for new work. Materials can differentiate new work from original building sections where appropriate, for example by the use of weatherboards where the original building is brick or by the use of "transitional" materials between old and new.
- Extensions or alterations must retain existing materials and finishes and use compatible materials for new work.
- New face brickwork should match the existing brick in colour and texture, and type of jointing and mortar colour.
- Unpainted face brick or stone must remain unpainted and unrendered.
- Original timber windows must be retained, repaired or reconstructed in existing buildings. New doors and windows must be of materials consistent with the existing building.
- Colour schemes must match the period of the building.
- Ensure that the new work is recognisable as new, 'blending in' with the original building without unnecessarily mimicking or copying. Mock historical details must not be applied.
- Retain front verandahs. Reinstating verandahs, and removing intrusive changes is encouraged, particularly where there is physical and/ or historic evidence.

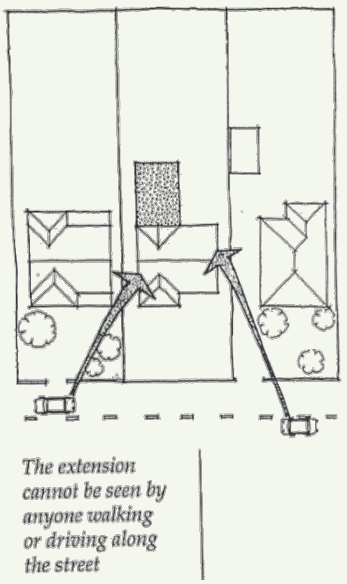


Figure 16.3
Another example of non-visible additions in a heritage-sensitive area.

16.6 Change of Use of a Heritage Item

Maintaining the original use of a building is desirable as it usually achieves the retention of the original floor plan of the building and decorative features such as fireplaces, chimneys, ceiling roses and cornices. The continuation of an original use of a building also enhances its heritage significance.

It is not always possible, however, to retain the original use of a building due to changes in technology and changes in market/social trends. Changing the use of a heritage item may be acceptable on heritage grounds in many cases, provided the use is compatible and the heritage significance of the item is not adversely affected. The Burra Charter includes a definition for compatible use as follows:

> *"Compatible use means a use which involves no change to the culturally significant fabric, changes which are substantially reversible, or changes which require minimal impact."*

Each new use will inevitably bring change to the fabric of the place. When considering new uses it is important to try and ascertain what the likely impact of a proposed use will be. Will the changes affect the significance of the place? Will they be minor or reversible? If the original use of a place becomes redundant, finding another similar use may help in retaining the place's significance. Sometimes a

***Advisory Note*:**
The adaptive reuse of heritage buildings can provide the necessary viability for the continued use and maintenance of heritage buildings. Accommodating the new use should involve minimal change to significant fabric in order to protect heritage significance.

Elements or artefacts from the original use (where present) may be required to be retained to assist interpretation. For example, retaining machinery in-situ and the like.

continuing historical use is the reason why a place is considered important, and continuing that use is essential. There is a danger that gradual cumulative changes will reduce the ability to interpret significant aspects of the building. Very different uses (such as commercial uses in a former dwelling) may require significant changes to the building fabric, because of the need for amenities, or perhaps fire-rating of walls and ceilings. It is important to alter as few original features and/or materials as possible when changing the use of a building.

Adaptive reuse of heritage buildings can provide the necessary viability for the continued use and maintenance of heritage buildings. Accommodating the new use should involve minimal change to significant fabric in order to protect heritage significance. Elements or artefacts from the original use (where present) may be required to be retained to assist interpretation. For example, retaining machinery insitu and the like.

Specific objectives for a change of use to a place of heritage significance and importance are:

- Encourage heritage items to be used for purposes appropriate to their heritage significance.
- To avoid facadism i.e. to avoid gutting the building and retaining only facade;
- To ensure that new work is not a poor imitation of the original historical style of the building;
- To propose a new use for the building that is compatible with its original use.

Specific development controls for a change of use to a place of heritage significance and importance are:

Adaptive reuse of a heritage building or item should:

- The adaptive reuse of a heritage item should minimise alterations or interference with significant fabric. The changes are to enable the continued interpretation of the original use.
- Retain all significant fabric and architectural detail of the heritage building, or if the item is a site, any features of the site that contribute to the heritage status of that site.
- Retain the general appearance of the building so that its original role can be readily interpreted.
- Ensure that new services are sympathetically installed especially where upgrading is required to satisfy fire or Building Code of Australia requirements.

16.7 New/Infill Development

The design of any new or infill development located within or within close proximity to a heritage conservation area shall give consideration to the following:

- Design infill and replacement buildings to reflect the general historic character of the precinct and nearby characteristic and heritage buildings. In commercial precincts use awnings and verandahs to reduce the bulk and scale of buildings.
- New development must have a hipped or gabled roof without unnecessary secondary projections.
- New development must use materials which are consistent with the overall character of the streetscape, as defined by reference to the original older buildings in the immediate locality. It is important to understand the characteristics and features of an area before deciding on the form and style of a new building.
- Openings in visible frontages must retain a similar ratio of solid to void as to that established by the original older buildings. If a large area of glass is required, vertical mullions must be used to suggest vertical orientation. A large window could also be set out from the wall to form a simple square bay window making it a contributory design element rather than a void.
- Use of articulation in facades such as string courses, cornices, pilasters and other features that break up the scale of facades is encouraged
- The quality and quantity of existing street front garden landscaping must be maintained.

Siting of new or infill development shall give consideration to the following:

- New development must be aligned to the predominant building line and must provide for the retention of curtilages around heritage buildings.
- Where there is no identifiable setback pattern, new buildings should be setback at the same distance from the street as the adjoining properties.
- New development must be sited behind the building line of any adjoining heritage item.
- Development patterns such as subdivision layout, setbacks and spaces between buildings should be maintained.
- Size and scale of new development must be consistent with surrounding buildings in terms of the average predominant height, size and proportions.

Selection of materials should include consideration of the following:

- Garages, carports and sheds do not detract from the character of the

- Bricks of mixed colours (mottled) and textured 'sandstock' bricks are not permitted.
- Building bulk and large expanses of solid masonry must be avoided through the use of recesses, bays, vertical elements and/or the use of additional surface treatments/materials.
- Corrugated galvanized iron (or zincalume finish) is a most appropriate roofing material for new buildings in historic areas.

16.8 New Ancillary Structures

In order to blend with their surroundings, garages, carports and sheds should be sized and detailed in ways that approximate the best elements of traditional architecture in the Heritage Precincts and adjacent Heritage Items. Any proposed ancillary structure (eg. garages, sheds, pergolas, etc.) that is to be situated upon an allotment that contains an item of heritage significance must:

- Garages, carports and sheds do not detract from the character of the area and/or heritage item due to inappropriate location, design, materials and colours.
- Not be located between the building line and the street frontage.
- Be no greater than one storey with an attic.
- Be constructed of materials complementary to the main dwelling.
- Be located between the rear of the dwelling and the rear boundary.

Garages should:

- Have simple rectangular plans.
- Have doors restricted to single car width.
- Have a roof form which is gabled or hipped with roof pitch equal or less than that of the main dwelling.
- Be detached from the existing house.
- Be set to the rear of the dwelling.
- Be constructed of materials of simple character i.e. weatherboards, vertical shiplap boards and corrugated metal roof sheeting.

Carports should:

- Be of timber frame construction. Standard steel frame carports and garages are not appropriate.
- Have a roof pitch slightly lower than that of the main building – generally 25-30°. Skillion rooflines are generally not appropriate.
- Be detached from the existing house.
- Be set to the rear of the dwelling.

16.9 Demolition/Removal of Heritage Items

The demolition of heritage items or contributory buildings within a heritage Conservation Area is contrary to the intent of the heritage listing and should be treated as a last resort.

In assessing an application for the demolition of a heritage item or a contributory building, Council will consider:

1. The heritage significance of the item or the Building;
2. The structural condition;
3. Comparative analysis of options; and
4. The contribution the item or building makes to the streetscape.

If the structural capability of the building is in question, Council may request the submission of a report by a structural engineer with heritage experience to determine whether the building is, or is not, structurally capable of reasonable and economic use. For heritage items that appear on the State Heritage Register, the application will be referred to the NSW Heritage Office.

Where demolition of a heritage item or a contributory building within a heritage Conservation Area is approved it will generally be a conditional upon the submission of a Statement of Heritage Impact and further an archival record of the building and site. This must be prepared in accordance with the guidelines produced jointly by the NSW Heritage Office titled “Statements of Heritage Impact” and “How to Prepare Archival Recordings for Heritage Items”.

For Archival recordings, photographs should be submitted and keyed to a plan of the building(s). In some cases, particularly where the building is of regional significance, measured drawings will also be required. These should illustrate all elevations of the building(s) and the site, plans and sections and details of decorative features of the building(s).

In circumstances where it has been determined by Council that demolition/removal is warranted the following statements will apply:

- Except where a building presents an immediate threat to public safety, the total demolition of a building shall not be permitted unless an application for a replacement building within a garden setting is approved. Where a development proposal is not an improvement over the original building, then there are no grounds for replacing the original building.
- Where in the opinion of the Council, neglect of a building has contributed to the building becoming structurally unsound so as to necessitate total demolition, redevelopment of the site shall not exceed the gross floor area of the building. Additions to a replacement building shall not be permitted within 3 years of completion of the replacement building.

- The partial demolition of original external building fabric of buildings shall only be permitted in the context of permitted alteration or additions.
- Demolition of a building may be carried out no earlier than 6 weeks prior to the commencement of construction of an approved replacement building.
- Alteration to, or demolition of, internal building fabric of buildings may be permitted provided the external building fabric of the building is not adversely affected.

Total demolition of existing pre-1950 buildings shall not be permitted unless:

- The building is so structurally unsound as to be beyond reasonable economic repair. The application must include a professional structural assessment in support of demolition; or
- The existing condition poses a significant health or safety risk that is beyond reasonable economic repair. The application must include a professional structural or health assessment in support of demolition; or
- In the opinion of Council, the integrity of the built form and street elevations of an original building has been extensively and irreversibly diminished by unsympathetic alterations and additions **and** any replacement development conforms to this plan.

Contact the Council to arrange a meeting with the Heritage Advisor if you are considering demolition or the removal of a heritage item**.**

16.10 Colour Schemes

Colour choice is often based on fashion, and can change over time. Original colour schemes usually reflect the period of the property. Use of traditional colours can enhance the contribution of a property to the conservation area.

Painting in a colour scheme suited to the age of a building can be well researched using a number of resources. Many paint suppliers have traditional colour charts that indicate suitable colours for properties from various periods. Publications are also available that demonstrate the use of these colours. References on heritage colour schemes include:

- *Colour Schemes for Old Australian Houses*, I Evans, C Lucas & I Stapleton
- *More Colour Schemes for Old Australian Houses*, I Evans, C Lucas & I Stapleton
- *Caring for Old Houses*, I Evans
- *How to Restore the Old Aussie House*, I Stapleton
- *Australian Houses of the 20's and 30's*, P Cuffley
- *Australian Houses of the Forties and Fifties*, P Cuffley

***Advisory Note*:**
External redecoration may be eligible for a grant from Council's Local Heritage Assistance Fund, if carried out using traditional colours.



***Figure 16.4*:**
Heritage sign re-creation and mural utilising colours sympathetic to the surrounding heritage streetscape. (2012)

16.11 New Services & Technology

Council encourages the installation of devices, which improve the water conservation and energy efficiency for housing. However, on heritage items and in conservation areas new technologies (such as solar heating and telecommunications structures) should not be visible from a public place nor intrude on any views or vistas gained from neighbouring properties. The style, siting and visual treatment of such structures should be discrete and not intrusive.

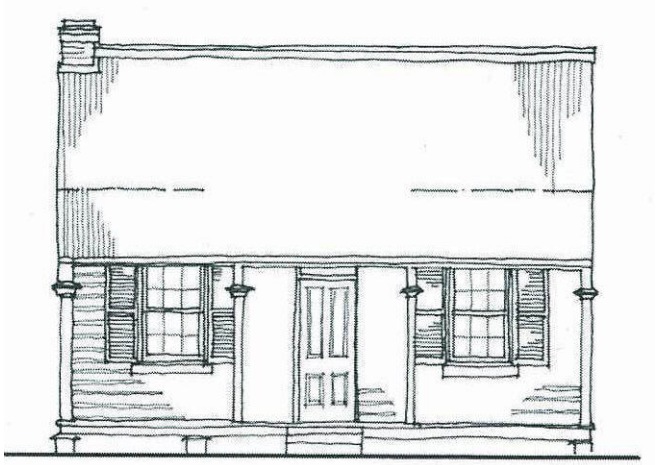
Furthermore, exhaust vents, skylights, air conditioning ducts and units, solar panels, TV antennae and satellite dishes shall not be visible on the main elevation of the buildings or attached to chimneys where they will be obvious. In heritage areas they shall be hidden from view as much as possible.

16.12 Common Period Building Styles in the Coolamon Shire Local Government Area

The following table provides an overview of the common type architectural styles found throughout the Shire that relate to the most common buildings of heritage significance.

Table 16.1

Victorian Period (to c1890)



Vernacular Cottage

Characteristic features

- Single fronted form, symmetrical massing Gable roof, open front verandah with little decoration
- Simple brick chimney
- Skillion lean-to to the rear
- Timber louvered shutters to windows

Materials

- Face brick with corrugated iron roofing
- Brick rendered window sill
- Timber verandah and brick steps



Victorian House

Characteristic features

- Double fronted form with steep (Gothic style) hipped roof
- Bull nose verandah
- Decorative chimney

Materials

- Rendered brick or timber weatherboard walls
- Slate or corrugated iron roofing
- Cast iron lacework verandah details
- Timber windows (double hung)

Federation Period (c1900-1915)



Federation House

Characteristic features

- Asymmetrical plan
- Prominent hipped and gabled roof with decorative features, shaped bargeboards
- Turned or fretted woodwork to verandahs
- Casement windows, window hoods
- Tall chimneys with decorative chimney pots

Materials

- Face brick walls and window sills
- Stone base course
- Terracotta or slate roofing with decorative finials and ridge capping

Table 16.1 (cont.)

Edwardian Period (c1910-1925)



Edwardian House

Characteristic features

- Asymmetrical plan
- Hipped and gabled roof with prominent eaves
- Casement windows, window hoods
- Semi enclosed front verandah
- Tall chimneys with decorative chimney pots

Materials

- Face brick walls and window sills
- Pebble dash base course and verandah
- Terracotta roof tiles or corrugated iron roofing

Interwar Period (1920-1940)



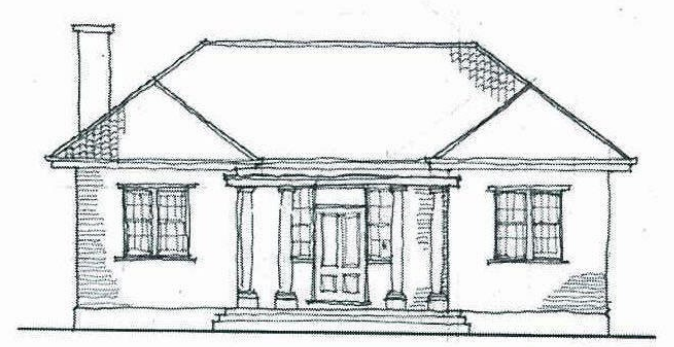
Interwar Bungalow

Characteristic features

- Asymmetrical front, gabled roof
- Simple wide barge boards and battening to gable
- Casement windows with flat bay roof and bracketed eaves

Materials

- Liver brick walls, terracotta tiled roof
- Rendered copings and caps, decorative vents and grilles



Colonial Revival

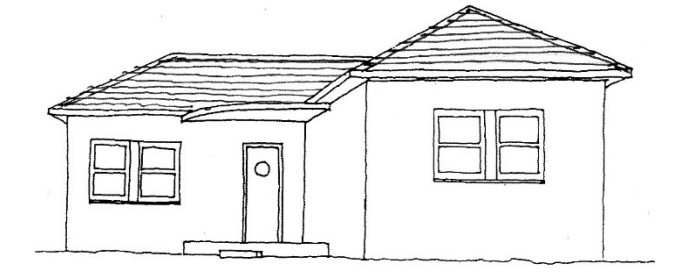
Characteristic features

- Double fronted form with hipped roof
- Entry porch, no verandah
- Double hung sash windows, stone sills
- Half glazed door with side lights

Materials

- Defined base course
- Terracotta roof tiles
- Rendered chimney shaft

Interwar Period (1920-1940)



Post War Period (after 1945)

Characteristic features

- Rectangular or 'L' shaped plan
- Red / Brown bricks with hipped roof - cement tiles
- Standard - horizontal timber or steel window
- Little or no decoration

Materials

- Red - Brown brick walls
- Hipped roof – cement tiles
- Concrete / rendered hood

17. Signage

Signage is an important part of both the urban and rural environment. It is commonly used throughout the Shire to promote business and to communicate information, for instance upcoming event details or real estate advertising. Excessive signage can however be detrimental to the surrounding aesthetic environment, sometimes confusing the message that is trying to be conveyed.

The DCP encourages signs to complement their location, and not dominate or detract from the character of the area.

Figure 17.1 below depicts the array of signage types etc.

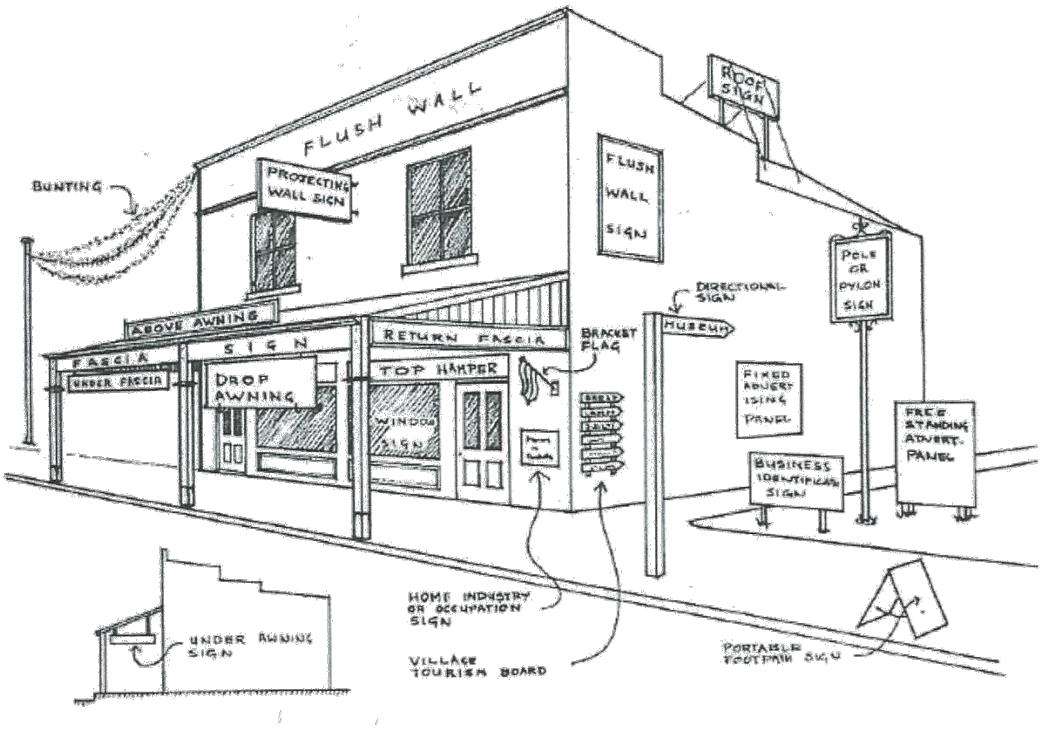


Figure 17.1:
Generic commercial building depicting common names for signage types.

17.1 Objectives

The objectives of these controls are to:

- To ensure a common approach to the location, use and types of signage throughout the Shire.
- To provide a platform for business, charity organisations and event committees with a means of promotion.
- To provide an appropriate level of rationalisation to signage as a means of protecting the quality of the streetscape.

17.2 Key Local Considerations

The following are key local principles that apply to outdoor advertising:

- Signage must comply with SEPP *(Industry and Employment) 2021*.
- Advertising in rural areas may only advertise a facility, activity or service located on the land or direct travelling public to a tourist facility or building or place of scientific, historical or scenic interest within the area.

- External illumination to signs must be top mounted and directed downwards.
- Signage should not be placed on the roof of a building or break the view of an historic parapet or roof-line of a building. A possible exception is single-storey verandah roof lines, where signs sometimes project above verandah spouting or across the verandah roof.
- Advertisements on heritage buildings or signs within areas of special significance should be discreet and should complement the building or area.
- Signage located on, or adjacent to a classified road may require consultation with the *Transport for NSW*.

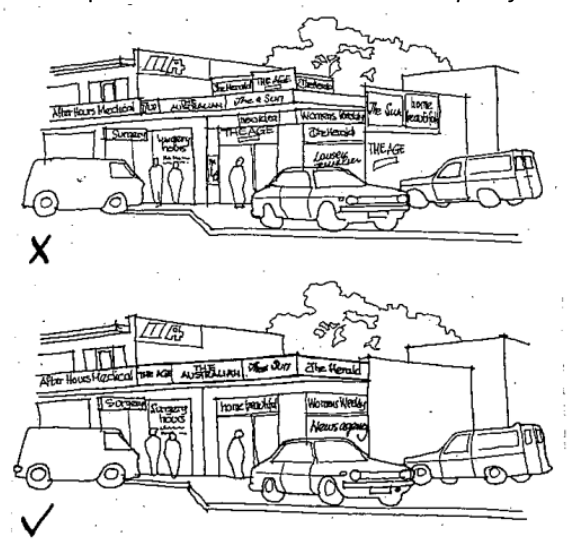


Figure 17.2:
This figure depicts the appropriate level of rationalisation of signage that should be applied.

The signage within the top image is busy, with no formality in the way in which the signage is presented.

The bottom figure however delivers the signage in a more arranged approach, and whilst simpler in design, it portrays the message much more clearly and cleanly.

Explanatory Note
For the purpose of this section, the main street precincts for each town and village are as follows:

ARDLETHAN:
Ariah Street from Mirrool Street to Yithan Street

BECKOM:
Ariah Street from Moore Street to Deakin Street

COOLAMON:
Cowabbie Street from Stinson Street to Loughnan Street

GANMAIN:
Ford Street from Langham Street to Lake Street

MARRAR:
York Street from See Street to Wood Street

(*cont. overleaf)*

17.3 Business Precincts – Shire Villages

The main streets of each of the Shire Villages main street precincts where there is high heritage significance, the following additional requirements will apply.

- Signs are to be in heritage colours appropriate to the particular setting, and in keeping with the architectural style or period of the building to which they relate
- Neon, flashing or large glowing signs will not be permitted anywhere within the precinct
- With the exception of heritage signs or Community Service signs, other permanent signage is limited to signs which identify the business/ establishment or product/service being offered. Permanent commercial promotional signage will not be permitted within the precinct
- Corporate colours will not override the heritage requirements for building colour schemes.

17.4 A-Frame Signs/Sandwich Boards

A single A-Frame/Sandwich Board sign is permitted per premises subject to the following:

- The premises must be used for a business activity (i.e. a commercial or industrial use) or a non-residential use, operating under a Council approval or an existing use.

- The sign is only displayed during operating hours and wholly outside of the premises to which it relates.
- Material displayed on the sign (i.e. letters, words, phrases and images) should not be non-offensive and appropriate towards the activity being promoted.
- Signs may be located on the footpath provided that a minimum unobstructed pedestrian access path of 1.8m is to be maintained at all times.
- A sign must not exceed a maximum height of 1m, and width of 0.75m
- Signs are to be freestanding and self-supporting. Signs tied to trees, poles, street bins and the like will not be permitted.
- Signs should be removed in windy or stormy weather, or in any such condition that may jeopardise public safety.
- Signs are not to be placed on roadsides, median strips or roundabouts.

17.5 Footpath Furniture

Footpath furniture incorporating signage or corporate branding will be permitted subject to:

- Outdoor chairs and umbrellas advertising products such as coffee, alcohol or soft drink being related to the business.
- The corporate colouring and/or branding does not dominate the streetscape or the Heritage Item, and is consistent with any existing signage or colouring on the premises.

17.6 Prohibited Signage

Council has identified that the following advertising signs are not acceptable methods of outdoor advertising in Coolamon Shire:

- Electronic trailer mounted road signs used for promotional or advertising.
- Roof or wall signs projecting above the roof or wall to which it is affixed.
- Flashing or intermittently illuminated signs.
- Advertisements on parked motor vehicles or trailers (whether or not registered) for which the principal purpose is for advertising.
- Signs fixed to trees, lights, telephone or power poles.
- Signs which could reduce road safety by adversely interfering with the operation of traffic lights or authorised road signs.
- Signs that are considered to be unsightly, objectionable or injurious to the amenity of the locality, any natural landscape, public reserve or public place.
- Numerous small signs and advertisements carrying duplicate information.
- Overhead banners and bunting, except in the form of temporary advertisement for community events, etc.

MATONG:
Matong Street from Wood Street to Olive Street

Figure 17.2:
Typical A-Frame /Sandwich Board



18. Rural Development

There are three specific rural zones located within the Coolamon LGA. These are RU1 – Primary Production, RU3 – Forestry and RU4 – Primary Production Small Lots. Development within these zones (generally with the exception of agriculture and forestry) may require Council's consent.

Such development may include new work or alteration/additions to dwellings which are ancillary to agriculture and forestry, intensive livestock keeping establishments such as feedlots and piggeries and pine plantations. Prior to undertaking any development or work in the RU1 or RU4 zone it is recommended that Council be contacted.

18.1 Objectives

The objectives of these controls are to:

- Identify the key considerations for development within rural areas of the Coolamon Shire.
- Outline the matters relevant to rural development that support the objectives of rural zonings under the *Coolamon Local Environmental Plan 2011*.

Advisory Note

Reference is made to the *State Environmental Planning Policy (Exempt & Complying Development Codes) 2008* which allows for certain development types to proceed without Council consent, or alternatively following the lodgement of a Complying Development Certificate.

It is recommended you speak with Council staff prior to proceeding with any development classified under the Policy.

18.2 Rural Zone Planning Considerations

Council will consider the following matters in assessing any development proposal within rural zones:

- The present use of the land, the potential use of the land for the purposes of agriculture and the potential of any land which is prime crop and pasture land for sustained agricultural production.
- Vegetation, timber production, land capability (including soil resources and soil stability), water resources (including the quality and stability of water courses and ground water storage and riparian rights).
- The future recovery of known or prospective areas of valuable deposits of minerals, coal, petroleum, sand, gravel or other extractive materials.
- The protection of areas of significance for nature conservation or of high scenic or recreational value, and places and buildings of archaeological or heritage significance including Aboriginal relics and places.
- The cost of providing, extending and maintaining public amenities and services to the development.

18.2 Agricultural Structures

In the RU1 – Primary Production zone, Council will generally consider the following development types as being exempt from the development approval process subject to specific development standards being adhered to for each development type.

1. Machinery, Hay & Bulk Grain Storage Sheds
   - The structure is to be used primarily for the purposes of primary production.
   - The structure must be no higher than 8m above the existing ground level and have a floor area of 400m² or less;
   - The structure is not to be located within 50m of a natural water body or sensitive land area.

Advisory Note

The development standards identified in Section 18.2 relate only to farming enterprises. A complete development assessment will still be required for similar developments proposed by commercial and industrial applicants due to the scale and densities required by these operations.

- The structure is setback no less than 100m from a property boundary.
- The structure is to be designed and constructed in accordance with the specifications of a professional Structural Engineer.

2. Grain Silos
   - Are to be used primarily for the purposes of primary production.
   - Are to be setback no less than 100m from a property boundary.
   - Are to be designed and constructed in accordance with the specifications of a professional Structural Engineer.



Above:
A header working at sunset.
(2012)

19. Subdivision of Land

Council aims to facilitate consistent and appropriate design standards for subdivisions, as well as ensuring that any lot created is adequately serviced and accessible.

19.1 Objectives

The objectives of these controls are to:

- Reflect the requirements pertaining to the subdivision of land as prescribed by the *Coolamon LEP 2011*.
- Ensure that subdivision is planned having regard to the environmental, social and economic opportunities of a site.
- Match lot sizes to the capacity of the land.
- Encourage subdivisions that promote sustainable design for future dwellings.
- Provide all services to all allotments in a timely manner.

Advisory Note

Reference is made to **section 21 – Engineering Standards**, which is to be read in conjunction with this section.

19.2 General Requirements

The following controls will apply to all development in which a subdivision of land is proposed:

- All proposed allotments must meet the minimum lot size requirements as determined by the *Coolamon LEP 2011*. Additional standards relating to lot size may be imposed by this DCP.
- Additional village controls:
  - i. Allotments must have a minimum lot frontage of 20m.
  - ii. Sewered allotments will be allowed to maintain an 800m² minimum allotment size in accordance with the LEP.
  - iii. Unsewered village allotments shall observe the following restrictions:
  - iv. A minimum lot size of 2,000m² with a conventional on-site sewage management system; or
  - v. A minimum lot size of 1,000m² with a Council-approved alternative, such as an aerated wastewater treatment system.
- Lots sizes within and around the villages is detailed in Appendix 2 i.e.
  - **MAP A: Subdivision Control Plan No. 1 (Coolamon – Marrar – Ganmain)**
  - **MAP B: Subdivision Control Plan No. 2 – (Ardlethan – Beckom – Matong)**
- Essential services for all proposed allotments are to be provided in accordance with Clause 6.4 – Essential Services of the *Coolamon LEP 2011*.
- Easements are not to encumber more than 10% of the total allotment area.

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- Easements are not to encumber more than 10% of the total allotment area

19.3 Servicing of Lots

The following services are to be provided (or appropriate arrangements put in place with the relevant authority) to each allotment including any residual allotment prior to Council releasing the final plan of subdivision:

Electricity

- Electricity to a low-voltage standard as approved by the relevant energy authority. Where a grid connection is not available, stand-alone solar systems may be permitted following a thorough assessment by Council.

Water

- Potable water, connected to a reticulated mains supply where available.
- Where a reticulated supply is not available, at least 45,000 litres (approximately 10,000 gallons) storage shall be provided for domestic purposes.
  - A minimum of 20,000 shall be reserved for firefighting purposes. Such supply may be part of the 45,000 litres previously referred to.

Advisory Note:

Useful contact details for service and utility providers:

Essential Energy:
132 391

Goldenfields Water:
(02) 6977 3200

Riverina Water:
(02) 6922 0608

Telstra:
132 200

Coolamon Shire Council:
(02) 6930 1800

- For the purposes of the foregoing, "firefighting purposes" is defined as being for the protection of the homestead/dwelling and adjoining structures, (e.g.: garage, etc).
- Where the number and location of structures warrants, additional storage capacity may be required (e.g.: Multiple Occupancy).
- Where in-ground/below ground storage is provided, access for firefighting vehicles shall be provided to enable drafting of water into a firefighting unit with said units own drafting equipment. In this regard, the standard suction hose is usually 6m in length.
- Where above ground storage is provided:
  - The outlet for domestic supplies shall be located at a level above that of the 20,000 litres served for firefighting purposes.
  - The outlet for firefighting purposes shall be fitted with a stop valve and standard 65mm storz outlet.
  - The outlet above shall be located so that access for firefighting units be provided, i.e. directly where there is vehicle access to the outlet or via plumbing where such direct access is not possible. Such access should be on the opposite side to the dwelling or building.

Telecommunications

- Provision of telephone services to a standard approved by a recognised telecommunications carrier.

Explanatory Note

Even though advances in technology have made mobile telephone and internet technology more accessible, fixed networks are still considered to be more reliable. For this reason Council still require the adequate provision of fixed telephone services to most developments.

Access

- An all-weather access that connects Council's road network to the boundary of the subject property. All access design and construction is subject to approval by Council's Engineering Department.

Sewerage

- Adequate means of sewage disposal. Refer to **section 20 – Sewage Management** for standards relating to sewage management.

Stormwater

- Adequate means of stormwater drainage and management. Refer to **section 21 – Engineering Standards** for further details relating to drainage standards.

19.4 Heritage

Where Heritage Items are within close proximity of any proposed subdivision site, the design of the lot layout is to be sympathetic with building with heritage values identified by Council.

19.5 Sewage Management

Prior to Council granting consent to a subdivision of land, full consideration must be given to the disposal of sewage for any future development.

In the first instance consideration must be given to the availability to connect to or extend a reticulated sewerage system. Where a reticulated sewerage system is not available the following matters will be considered:

- The quantity of usable land available for the disposal of effluent in a manner that does not jeopardise environmental or public health.
- The geology and topography of the site, including the proximity to any nearby water courses or drainage paths.
- Proximity to land identified as being sensitive in accordance with the *Coolamon LEP 2011*.

Refer to **section 20 – Sewage Management** for further standards relating to sewage management.

19.6 Flood Liable Land

Prior to Council granting consent to a subdivision of land that is flood liable, the following points must be taken into consideration:

- Compliance with the *NSW Floodplain Development Manual*.
- Flood free vehicle access is required for all lots created by subdivision.
- Where flood free vehicle access is not possible, the development must be able to achieve safe wading criteria as specified in the *NSW Floodplain Development Manual* (refer to Figure 15.7).
- The provision of any infrastructure to a proposed flood prone allotment shall not cause the path or storage patterns of floodwaters to be altered in a manner that detrimentally affects existing properties or infrastructure.



Figure 25.1:
Ganmain – Waterview Street in flood. (2012)

19.7 Bushfire Prone Land

The subdivision of any land identified as being bushfire prone shall demonstrate compliance with the following prior to a consent being granted:

- Section 4.14 *Environmental Planning & Assessment Act 1979.*
- *Planning for Bushfire Protection*, as published by the NSW Rural Fire Service.

Information relating to Bushfire Prone Land is available upon request from Council.

19.8 Road Construction

For development standards relating to road construction please refer to **section 21 – Engineering Standards**.

19.9 Street Lighting

Subdivisions proposing multiple lots and/or new roads within village areas will be required to provide street lighting. All street lighting shall be designed and installed in accordance with *AS/NZS 1158.1.1:2022 – Lighting for roads and public spaces - Vehicular traffic (Category V) lighting - Guide to design, installation, operation and maintenance* and to the satisfaction of Council and the relevant energy authority.

19.10 Easements

Easements to benefit Coolamon Shire Council are to be provided over all stormwater drains and sewer mains located within private land.

Below:
Various images of the Coolamon Shire sourced by the *Capture Coolamon* photographic competition.
(2013)



20. Sewage Management

Sewage Management involves *"any activity carried out for the purpose of holding or processing, or reusing or otherwise disposing of, sewage or by-products of sewage."* Generally sewage management can be achieved by connecting to Council's sewer, or when sewer is unavailable, installing and operating an On-Site Sewage Management (OSSM) system.

Effective management of domestic sewage and wastewater is an important consideration for the health of Coolamon Shire Council residents and the environment. It requires the active involvement of both the Council and landholders.

20.1 Objectives

The objectives of these controls are to:

- Assist in assessing land for on-site disposal of effluent.
- Implement the provisions of the *Local Government Act 1993* and *Regulation* thereunder.
- Protect surface and ground water quality.
- Incorporate sewage management considerations in the early stages of development and environmental assessment as required under the *Environmental Planning and Assessment Act 1979.*

20.2 General Requirements

The following controls will apply to all development that requires disposal of sewage waste:

- Premises will be connected to Council's sewer whenever there is either:
  i. An existing connection available to the development site; or
  ii. The potential to connect to a sewer main that is adjacent to the development site; or
  iii. The potential to connect to a sewer main that is located within 75m of the development site.
- Whenever sewer is not available, the premises will require an on-site sewage management (OSSM) system. Approval to install and operate the system is to be sought from Council in accordance with the requirements of Section 68 *Local Government Act 1993*, with all systems to comply with *AS/NZS1547:2012 – On-Site Domestic Wastewater Management* and the most current version of the *Environmental Health Protection Guidelines On-site Sewage Management for Single Households* as published by the NSW Division of Local Government.
- The following types of OSSM system are considered acceptable by Council, subject to the requirements as set out further in this section:
  i. Conventional Septic Tank and associated Absorption Trench/Transpiration Bed;
  ii. Aerated Wastewater Treatment Systems;
  iii. Systems carrying a current approval as issued by NSW Health.
- All plumbing and drainage work is to be undertaken in accordance with *AS3500.2:2021 Sanitary Plumbing & Drainage*.

20.3 Conventional Septic Tanks

Council may grant consent to a system consisting of a Septic Tank and associated absorption trench or transpiration bed subject to the following:

- The tank has a minimum capacity of 3200L and contains a baffle. Additional tank capacity may be required depending on the potential load upon the system;
- Minimum absorption trench length and/or transpiration bed sizes will be determined by a suitably qualified geotechnical engineer. In the absence of a geotechnical

***Explanatory Note*:**

On-Site Sewage Management (OSSM) systems are commonly referred to as 'septics'. The word 'septic' generally means "infected with bacteria" and is therefore applied to these systems, as conventional 'septics' function by breaking down sewage via natural bacteriological processes.

Historically un-sewered areas have employed the conventional septic tank method of treating and disposing of sewage on-site. This type of system operates under anaerobic conditions (i.e. without oxygen) and discharges the waste effluent to a sub-surface (or underground) absorption trench or transpiration bed. Generally trenches and beds require large disposal areas and well-drained soil.

More recently, Aerated Wastewater Treatment Systems (AWTS) have entered the marketplace as an alternative to the conventional septic system. An AWTS requires aeration and disinfection, as well as regular servicing by a licensed technician; however they do have the advantage of being suited to sites with limited disposal areas, flood liable areas and poorly drained soils. An added advantage is the ability to irrigate the effluent on landscaped areas such as lawns and trees.

engineer's certification, the trench length or transpiration bed size will be determined by Council staff.

- Septic Tank and Absorption Trench/Transpiration Bed systems will not be permitted on the following allotments:
  i. Allotments less than 2,000m² in area, or with insufficient space to allow an absorption trench or transpiration bed to correctly function;
  ii. Allotments subject to flooding or inundation;
  iii. Any premises in which a Council officer has reason to believe that such a system will be detrimental to the environment or surrounding landholders.

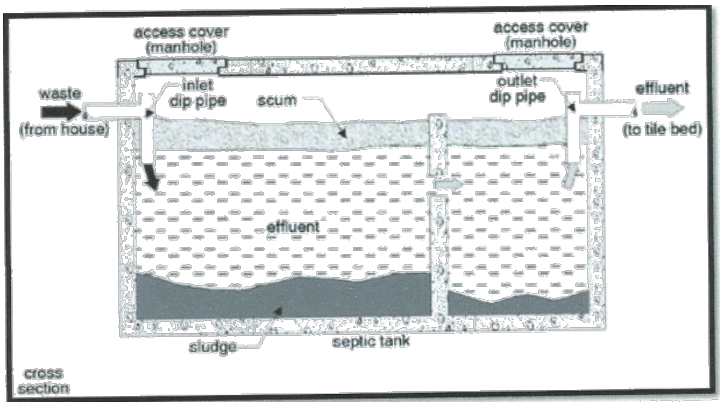


Figure 20.1:
Cross section of septic tank system

20.4 Aerated Wastewater Treatment Systems (AWTS)

Council may grant consent to an Aerated Wastewater Treatment System subject to the following:

- The proposed system has a current accreditation from NSW Health;
- The allotment has a minimum size of 1,000m². Approvals for smaller allotments will be subject to a thorough site assessment, and as such may not be forthcoming.
- Minimum effluent disposal area sizes will be determined by a suitably qualified geotechnical engineer in accordance with the manufacturer's requirements. In the absence of a geotechnical engineer's certification, the size of the disposal area will be determined by Council staff.

Advisory Note:
All AWTS models must be accredited by NSW Health. Accordingly, all AWTS models are required to be serviced at regular intervals by a suitably accredited technician. Service intervals are generally every 3-4 months, depending on the model and its accreditation.

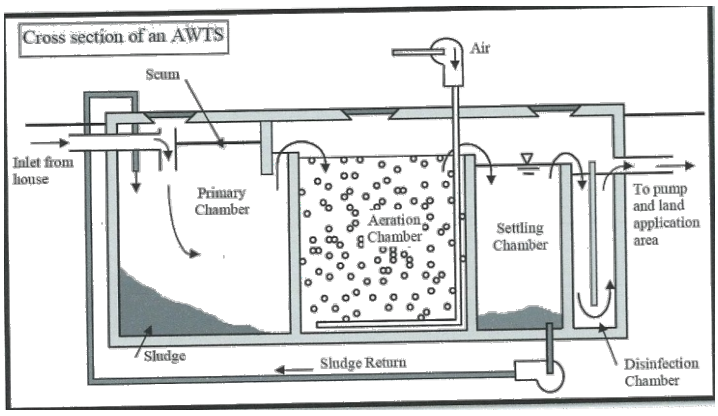


Figure 20.2:
Cross section of an Aerated Wastewater Treatment System

20.5 Alternative On-Site Sewage Management Systems

Council may grant consent to an alternative system type which may include the following:

- Grey water re-use;
- Composting toilets;
- Reed beds;
- Cesspit;
- Any other system type.

Any such system must have a current accreditation from NSW Health prior to Council considering its use and installation. It is recommended that Council staff be contacted for further advice prior to lodging an application under Section 68 *Local Government Act 1993*.

Any assessment by Council staff of an application for the installation of an alternative type of sewage disposal system must take into account the NSW Health accreditation.

21. Engineering Standards

The following engineering standards will be applied by Council to ensure consistency and uniformity across all infrastructure within the Shire. Compliance with this section will also ensure that all existing assets are protected and maintained accordingly.

Alternative solutions to those adopted by this document may be considered or applied at the discretion of Council's Executive Manager, Engineering & Technical Services.

Costs associated with infrastructure provision are generally borne by the applicant unless alternative arrangements have been made, and subsequently endorsed by Council.

21.1 Provision of Access

Development proposals that are required to be provided with an all-weather access shall conform to the following:

General

- Access type will be determined by Council's Engineering Department, and will take into consideration factors such as fall, drainage, traffic vision and specific site conditions, and will be constructed in accordance with Council's *Road Access Policy and Rural Road Property Entrance Options Policy*.
- A minimum access width of 6m is required.
- A maximum access width of 12m is permitted.
- A maximum of 2 access points are permitted per road frontage.
- Access points are to be offset a minimum of 0.5m from common property boundaries.

Residential Areas

- Access points must be located a minimum of 6m from intersections.

Rural and Large Lot Residential Areas

- Access points must be located a minimum of 30m from intersections.

21.2 Road Construction

- The pavement of all new roads is to be constructed in accordance with the *Austroads Guide to Road Design*.
- All designs are to be approved by Council's Executive Manager, Engineering & Technical Services prior to the commencement of construction.
- Roads and streets are to be named in accordance with Council's *Road Naming Policy* and signposted at all intersections accordingly.

21.3 Sewerage

- The design of all sewerage infrastructure shall take into account the availability of sewer and the condition and of any existing sewer infrastructure in the vicinity.

- All designs are to be approved by Council's Executive Manager, Engineering & Technical Services prior to the commencement of construction.

21.4 Drainage

- The design of all stormwater drainage shall take into account the condition of any existing drainage infrastructure (including kerb and gutter) in the nearby vicinity.
- All developments requiring the management of stormwater shall be designed to handle a rainfall event intensity of 10 A.R.I.
- All designs are to be approved by Council's Executive Manager, Engineering & Technical Services prior to the commencement of construction.

21.5 Water Supply

- All mains water supply infrastructure is to be constructed in accordance with the requirements of Goldenfields Water County Council.
- Where Council roads are excavated to provide a water supply, the road shall be reinstated to a condition equal to or better than prior to the works being undertaken, ensuring appropriate backfilling and compaction levels are achieved.

21.6 Electricity & Telecommunications

- Electricity and telecommunications infrastructure is to be provided in accordance with the requirements of Essential Energy (electricity) and the appropriate telecommunications authority (telecommunications).
- New electricity and telephone services in RU5 & RE1 zoned land shall be located underground, except for infill development where aboveground services pre-exist.
- New electricity and telephone services in RU1, RU3, RU4, R5 and SP2 zoned land may be located aboveground.

22. Tree Removal

Trees form a valuable part to the rural and urban landscapes throughout the Shire. These range from remnant native vegetation, planted windbreaks, revegetation areas for erosion control and ground water management to ornamental plantings, gardens and public parks. The trees and vegetation considered to be significant need to be preserved to protect the amenity and landscape values of the locality.

Tree removal includes ringbarking, cutting down, topping, lopping, removing, injuring or wilfully destroying trees or other vegetation.

22.1 Objective

- To preserve the amenity of the area, including biodiversity values, through the preservation of trees and other vegetation
- To preserve the landscapes of the rural, town and village areas
- To identify those areas in which trees or vegetation make a significant contribution to rural, town and village landscapes
- To clearly identify the locations and circumstances in which permission for tree removal is not required

22.2 Tree Removal Controls

Permission for tree removal is required in the following prescribed areas for:

- Trees located on public land between a property boundary and a public road.
- Trees at a site identified as a Heritage Item or in a Heritage Conservation Area
- Trees or vegetation located within a 'Sensitive Area' on the Natural Resources Biodiversity Map

In considering any request for tree removal in the prescribed areas the following will be taken into consideration:

- Purpose of the tree removal
- Any contribution the tree makes to the heritage values of a Heritage Item or Heritage Conservation Area
- Any proposed replacement planting
- Potential value of the tree as habitat for native fauna
- The health of the tree
- Potential for the tree to be a risk to human life or property
- The outcome of any required biodiversity assessment (such an assessment is required for the removal of any native tree 3 metres or greater in height)

22.3 Approval not Required

Permission for tree removal is not required for:

- Native tree not greater than 3 metres in height
- Trees or vegetation located outside a "sensitive Area' on the Natural Resources Biodiversity Map
- Trees on a property not identified as being:
  - In a Heritage Conservation Area
  - Designated as a Heritage Item
  - Between the building line and a public road in a town or village

In addition approval or Development Consent is not required for tree removal that is:

- The clearing of native vegetation:

(i) That is authorised by a development consent or under the provisions of the Biodiversity Conservation Act 2016, or

(ii) The Local Land Services Act 2013 (Allowable Activities)

- Trees or other vegetation within a State forest, or land reserved from sale as a timber or forest reserve under the *Forestry Act 1916*, or
- Action required or authorised to be done by or under the *Electricity Supply Act 1995*, the *Roads Act 1993* or the *Surveying & Spatial Information Act 2002*, or
- Plants declared to be noxious weeds under the *Noxious Weeds Act 1993*

Note. Permissibility may be a matter that is determined by or under any of these Acts.

PART D: SPECIFIC DEVELOPMENT

23. Cowabbie Street Business Precinct

Councils adopted planning objective for the Coolamon Town Centre is to ensure the town's continuing primacy as the principle centre for higher order services and facilities in the Shire.

In the Town Centre, the Urban Conservation Area is based on the Cowabbie Street Business Precinct. This Precinct will continue to be enhanced by achieving quality urban design outcomes with sensitive heritage conservation. This will assist the Precinct to reach its full potential as a meeting place, business centre, community heart, and tourist attraction.

23.1 Objectives

The objectives of these controls are to:

- Achieve a high design standard commensurate with the precinct's prominent position in the Shire and on a classified main road
- Ensure new development is designed having particular regard to the precinct's recorded heritage significance, and to the need for the scale and intensity of new development to be in a harmonious relationship with existing development nearby
- Guide the design of development to contribute to the Shire's economic and commercial vitality ensure new development is consistent with the Shire Council's adopted planning strategy, Local Environmental Plan and other relevant plans and studies



Figure 23.1:
The Cowabbie Street Business Precinct.

23.2 Application of Controls

These controls apply to development proposed on land identified as being located within the Cowabbie Street Business Precinct (Figure 28.1).

The Precinct includes all private and public lands bounded generally by the Junee-Griffith railway on the south; Loughnan Street on the north; the un-named rear service lane west of Cowabbie Street; and Methul Street on the east.

23.3 Statutory Position

As per the *Coolamon LEP 2011* the Precinct is zoned RU5 – Village.

The Zone objectives include provision for a range of land uses, services and facilities that are associated with a rural village, and the promotion of the town of Coolamon as the Shire's primary urban centre. Council will always welcome proposals for imaginative and innovative developments which satisfy the flexible land-use provisions of the *Coolamon LEP 2011*.

Council will not support proposals for development including industries, hazardous industries, above-ground liquid fuel storage, vehicle maintenance and repair workshops, waste storage and management or uses which in the opinion of the Council are likely to generate unacceptable environmental impacts and not consistent with the retail, office or commercial objectives for land use in the precinct.

23.4 Cultural Heritage

The Precinct was identified in the *Coolamon Heritage Streetscape Study 1991*. Since 1991 Council has undertaken a series of streetscape projects and has maintained its strong commitment to heritage conservation, using specialist advice and policy assistance from the NSW Heritage Office. Award-winning streetscape improvements have also been completed through ongoing co-operation with landowners. The century-old Up-to-date Store at the northern gateway to Cowabbie Street has been restored as the "flag-ship" heritage property for the Shire.

A Cultural Heritage and Economic Development Action Plan has been prepared and adopted, demonstrating the potential importance of tourism to the Shire's economy.

This on-going concern for history, heritage and quality townscape is the basis for the current Council policy in which the highest possible priority is placed on protecting the heritage significance of Cowabbie Street.

23.5 Statement of Desired Future Character

The future character of the precinct will have the following attributes:

- Retention and enhancement of main-street heritage items and overall heritage quality.
- Priority focus on pedestrian amenity.
- Signage, street furniture and lighting design to be in sympathy with overall heritage townscape.
- Major off-street car parking (e.g. parking associated with large retail establishments, hotels) to be located outside the 'visual catchment' of Cowabbie Street.
- Views out of town to the north, east and west to be protected **(refer Figure 23.2)**.
- Views of the 'Up-to-Date' Store' (listed on NSW Heritage Register) and other individual Heritage Items to be protected.
- Traffic calming measures to control vehicle speeds in both north and south-bound carriageways (consistent with the RTA High Pedestrian Activity Area Program).



Figure 23.2
Important view corridors.

23.6 Ecological Sustainability

Council sees Cowabbie Street as offering opportunities for a number of local sustainability initiatives. These include improved facilities for cyclists; introduction of porous paving in selected locations; introduction of water sensitive urban design principles in all future development works (both public and private); and energy efficient (solar powered) lighting and signage.

It must be noted that whilst ecological sustainability is important, the provision of these facilities will not override the requirements of heritage conservation. Any external structures must be sympathetic to the amenity of the heritage streetscape.

23.7 Specific Development Controls

i. Visual quality and urban design

The following controls are designed to maintain the overall visual character of the public domain through sensitive control of built form (height, profile, massing), colour, materials, architectural detail and finishes:

- Shop-fronts and façade designs generally are important contributory elements to streetscape and heritage values in the town centre. All new developments fronting Cowabbie Street are encouraged to incorporate awnings whose design must be to the satisfaction of Council and frontages to

Cowabbie Street are to be articulated in such ay as to replicate the existing modular pattern. Council may consult with the NSW Heritage Office or Council's Heritage Advisor. The incorporation of traditional timber verandah posts is strongly supported.

- The profile of building elements such as roof ridges, gables, parapets, dormers and decorative features generally is to be consistent with the Statement of Desired Future Character of the precinct (i.e. section 22.4). Strongly expressed horizontal roof lines (when visible from Cowabbie Street) will not be supported.
- The height of any new building having a frontage to Cowabbie Street (east side) is not to exceed the height of the parapet of the building located at 99 – 101 Cowabbie Street.



Figure 23.3:
99-101 Cowabbie Street.

- The height of any new building having a frontage to Cowabbie Street (west side) is not to exceed the height of the front parapet of the building located at 120 Cowabbie Street.
- All new landscaping will be required to comply with the overall existing landscape theme for the precinct.

Notwithstanding the above provisions, the height of any new structure within the precinct must be to the satisfaction of Council. Council may consult with the NSW Heritage Office or Council's Heritage Advisor.



Figure 23.4:
120 Cowabbie Street.

ii. Existing land use pattern and redevelopment

Council acknowledges that the original pattern of subdivision and land tenure as laid down in the early plans for Coolamon town is no longer appropriate for many modern businesses that may require large sites and large frontages.

For retail development, the old pattern can be especially restrictive, and Council accepts the need to take this factor into account when considering new development proposal for those older sites.

Council requires the maintenance of the scale and continuity of heritage frontages and awnings along both sides of Cowabbie Street. Design of new buildings is to be consistent with this requirement.

Where existing vacant buildings or lots with small frontages are consolidated or amalgamated, design of new buildings will undertake to incorporate heritage frontages and awning. Frontages to Cowabbie Street are to be articulated in such a way as to replicate the existing modular pattern of shop-fronts and facades.

iii. Vehicular Access and Circulation

The main-street precinct is immediately north of the intersection of Wade Street and Cowabbie Street, the two main thoroughfares of the town.

Local traffic mixes with through traffic, however the width of the road reserve allows this to occur with minimal interference with local parking and pedestrian access. The occasional loss of pedestrian amenity, and potential for minor safety risks are evident, although the dual-carriageway configuration brings considerable benefits in this regard.

Council sees the opportunity for introducing a speed limit between Loughnan Street and the railway crossing. This limit would be consistent with RMS High Pedestrian Activity Area (HPAA) program and accordingly would be consistent with

the planning objectives relating to pedestrian amenity in this short but significant sector of Cowabbie Street.

Outside Cowabbie Street the precinct includes two north-south laneways which serve Cowabbie Street business houses by providing rear access. These laneways are to be retained and improved.

Depending on future development options/uses Council may consider these lanes appropriate for one way travel.

Due to the lot layout and building footprints, loading or unloading of heavy vehicles currently takes place in the rear lane. With limited space elsewhere this will need to continue. Servicing businesses with a frontage to Cowabbie Street is to take place in the rear lanes to the west and east of Cowabbie Street.

iv. Parking

Cowabbie Street has capacity for 101 parking spaces (parallel and angle). The side streets of Loughnan and Mann provide an additional 60 spaces. Off-street parking is limited to 13 spaces located behind the plaza on the eastern side of Cowabbie Street (accessible from the eastern laneway) as well as a number of 'informal' private yards. Outside the precinct, the supermarket on Mann Street has capacity for 55 spaces (staff and customers).

The Cowabbie Street Business Precinct houses occupy a total of approximately 1 ha of land area (major building footprints). These businesses are served by 161 spaces (not including Methul Street and numerous unmarked spaces on private land). This equates to 1 formal car space for every 62m^2 of building area.

Existing businesses are therefore served by 174 formal spaces (or I space for every 57m^2 of building area).

If spaces in Methul Street and on private lands are included, the total parking capacity within the Precinct is approximately 250 spaces.

The major issue of car spaces being used permanently throughout business hours is from owners or staff of shops. For this reason any new development will need to deal with parking provisions for staff.

Under this DCP, Council's policy requires a minimum of one off-street space per business plus one space for every 5 employees. Long-stay employee parking on Cowabbie Street is generally non-productive to main street trading and can be a deterrent to visitors and patrons. Hence Council policy in this regard is that in Cowabbie Street, priority must be given to short-stay parking for shoppers and visitors. Council

encourages town centre employees to support this policy by parking in Loughnan Street, Mann Street, or the rear lanes.

v. Pedestrian Movement

Council strongly encourages walking as a means of augmenting the visibility of local businesses and as a healthy activity in its own right.

Council may seek to extend and improve valued existing pedestrian facilities.

Council will take into account the extent to which any new development makes provision for pedestrian activity. The special needs of the elderly, the disadvantaged, and of young children must be addressed.

The sloping nature of the main street makes disabled access to some heritage buildings a challenge. Previous paving was installed to ensure wheel chair access. Some buildings incorporate steps (some in an ornate tile finish) that can restrict this access. Council encourages innovative designs to overcome this problem including; the relaying of sections of paving; internal ramps or minor changes to the shop front access.

Any proposed new access to existing buildings that detrimentally affects the heritage streetscape will not be supported by Council.

vi. Outdoor Space

The orientation and ambience of Cowabbie Street, coupled with the wide pavements, offer opportunities in appropriate locations for 'al fresco' (outdoor) dining and outdoor entertainment generally (refer **section 24 – Outdoor Dining**). Innovative and adaptive ideas will be considered provided it does not detrimentally affect pedestrian or vehicle traffic, Heritage or the health of individuals. Council seeks to encourage and support proposals for al fresco dining and related activities, subject to controls that ensure public amenity is retained.

vii. Business Development

Council aims to strengthen the Shire's economy and commercial vitality through a continuation of successful main-street improvement program. As new development is attracted to the town the following principles will continue to be applied.

- Customers appreciate choice and comparison – achieved through retail competition. Council will encourage such competition.
- Customers are attracted by Coolamon's unique and clearly articulated 'sense of place,' the attractive landscaping, the heritage townscape, and other design features. The heritage streetscape underpins the

town's success in attracting day tourist visits and travellers generally.

- People support businesses which are well presented. Council encourages up-grading and proper maintenance of all buildings within the Cowabbie Street precinct, thereby confirming the viability and pride of the town and creating a positive attitude amongst customers and visitors.
- Council will encourage development that will enhance Coolamon town's role within the overall economic structure of the Shire and region.
- The town has potential to generate employment and provide important retail and service centre functions

24. Outdoor Dining

Outdoor dining makes a significant contribution to the quality of public spaces and town life. The use of outdoor dining provides an active street frontage that is alive and ever changing. Coolamon has good weather and its citizens and visitors enjoy an outdoor lifestyle.

24.1 Objective

- To encourage outdoor dining in the town and village centres, and create opportunities for outdoor eating.
- To balance the needs of pedestrians with outdoor diners without creating a safety hazard.
- To establish the requirements for the operation of outdoor dining areas in public areas



Figure 2.1:
A typical outdoor dining area.

24.2 Outdoor Dining Controls

Outdoor dining areas are permitted on the footpath areas in the town and village mainstreets immediately in front of the adjoining business during business hours.

Outdoor dining areas are to comply with the following requirements:

Performance objective	Required standard
Provided for safe pedestrian movements	• 2m wide clear passage area to be maintained at all times (See Figure 24.1 for acceptable layouts).
Minimise potential for conflict between pedestrians, waiting staff and diners	• Tables and chairs to be located within a designated area adjacent to the business premises responsible for their operation. • Outdoor dining area to operate in conjunction with an existing business premises. • Maintenance of a public risk insurance policy (minimum sum insured against - $20 million, and noting Council's interest in the footpath on the policy). NOTE: Evidence of a current policy is to be submitted to Council annually. • The consumption of alcohol is prohibited and licences under the *Liquor Act 2007* will not be supported due to their incompatibility with alcohol free area objectives.

Maintenance of appropriate health and safety standards	• Site to operate in accordance with the requirements of the *Food Act 2003* and associated Regulations thereunder. • All tables and chairs to be kept clean and free of food scraps and litter. • Toilet and wash basin facilities within the existing premises to comply with the BCA (see Section 24.3). • Smoking within 10m of areas designated for outdoor dining areas will be prohibited.
Suitable furniture	• Furniture to be suitable for outdoor use. Details to be submitted for approval prior to purchase and placement within the public area. • Furniture to be stored within the business premises when the outdoor dining area is not in operation. • Furniture to be maintained in a physically sound condition. • In Heritage Conservation Areas, or on land containing an item of heritage significance furniture is to be sympathetic to the character of the surroundings. Details are to be submitted for approval prior to purchase and placement within the public area.

Table 24.1:
Outdoor dining layouts

Diagram 1

Footpath café adjacent to the respective indoor premises

- Alignment and minimum clearance for pedestrian traffic.
- Nominal dimensions of furniture layout with 2 chairs per table.

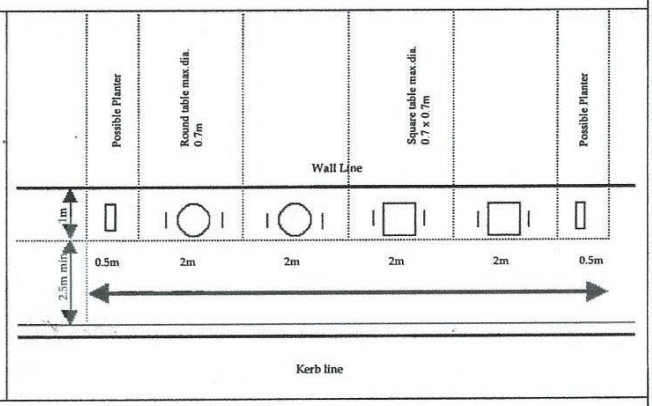


Diagram 2

Footpath café adjacent to the respective indoor premises

- Alignment and minimum clearance for pedestrian traffic.
- Nominal dimensions of furniture layout with 3 chairs per table.

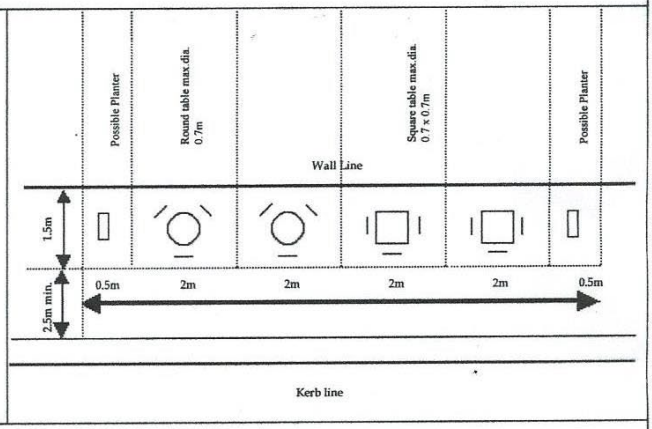


Diagram 3

Footpath café adjacent to the respective indoor premises

- Alignment and minimum clearance for pedestrian traffic.
- Nominal dimensions of furniture layout with 4 chairs per table.

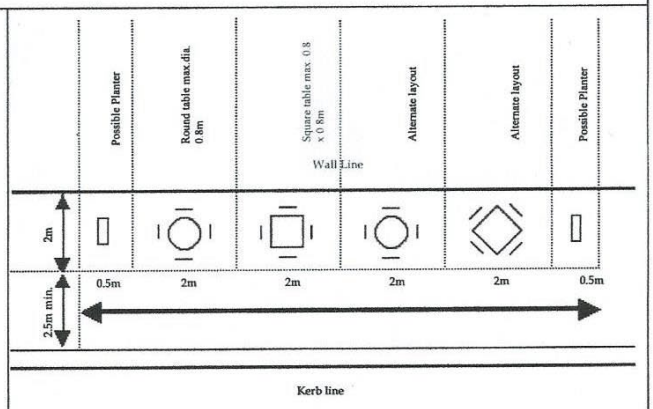
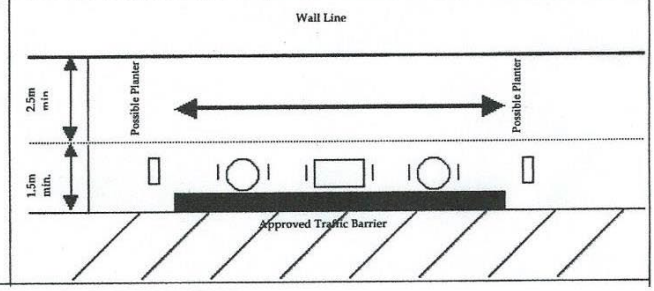


Diagram 4

Footpath café adjacent to kerb line



**Diagrams not to scale

24.3 Building Code of Australia

Under the Building Code of Australia food premises are required to have the toilet and washbasin facilities as per the following tables:

Table 24.1: Toilet Provision

Restaurant Capacity	Closets (male)	Closets (female)	Closets (accessible)	Urinals (male)
25 or less	1	1	1	1
26-50	1	2	1	1
51-75	1	3	1	2
76-100	1	3	1	2
101-125	2	4	1	3
126-150	2	4	1	3
151-175	2	5	1	4
176-200	2	5	1	4
201-225	2	6	1	5
226-250	2	6	1	5
Above 251	One additional for every 200 extra customers above 250	One additional for every 100 customers above 250	If total number of standard male and female closets exceeds 100 there are higher standards	One additional for every 100 extra customers above 250

Table 24.2: Hand-wash Basins in Toilets

Restaurant capacity	Wash basins (female)	Wash basins (male)
25 or less	1	1
26-50	1	1
51-75	2	2
76-100	2	2
101-125	2	2
126-150	2	2
151-175	3	2
176-200	3	2
201-225	3	3
226-250	3	3
Above 251	One additional for every 200 customers above 150	One additional for every 200 customers above 200

25. Relocatable Dwellings & Manufactured Homes

Relocating an existing dwelling provides an economical means of housing whilst also offering a sustainable alternative to demolition of existing dwellings. Developer's wishing to relocate a home into the Coolamon Shire must however consider the visual amenity of the not only the town or village in which the home will be located, but also the existing amenity and characteristics of the street. This sentiment is reflected within Council's *Relocatable Dwellings & Manufactured Homes Policy*.

Manufactured homes are often seen as an economical and time efficient method of constructing a dwelling due to their pre-manufactured nature and transportability.

In accordance with the *Local Government Act 1993*, a manufactured home is a self-contained dwelling (that is, a dwelling that includes at least one kitchen, bathroom, bedroom and living area and that also includes toilet and laundry facilities), being a dwelling that comprises one or more major sections, and that is not a registrable vehicle within the meaning of the *Road Transport (Vehicle Registration) Act 1997*. In other words, a manufactured home is a dwelling constructed with the primary purpose of being transportable.

Because of the way in which a manufactured home is defined under the Act, a slightly different approach to the development process is required. In summary, the process still requires a Development Application to approve the use of the site, however rather than obtain a Construction Certificate, applicants must apply for a manufactured home approval under Section 68 *Local Government Act 1993* and the *Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation* 2021.

25.1 Objectives

The objectives of these controls are to:

- Provide guidance to developers seeking to install a relocatable dwelling or manufactured home within the Coolamon Shire.
- Apply development controls that guide the approval and location of relocatable dwellings and manufactured homes.
- Ensure adequate amenity/streetscape protection when a dwelling is relocated into an existing streetscape;
- Ensure that quality urban design outcomes are achieved where manufactured homes are installed.
- Ensure that all manufactured homes meet the requirements of the *Building Code of Australia*.
- Ensure that all relocatable dwellings and manufactured homes installed within the Shire are constructed to be efficient in terms of water usage, electricity usage and thermal comfort.
- Meet Council's obligations of applying the principles of Ecologically Sustainable Development.

25.2 Application of Controls

These controls apply to the following type of development:

- An existing dwelling that is suitable for relocation to another site;
- All development applications involving the installation of manufactured homes (as defined by the *Local Government Act 1993* and the *Local Government (Manufactured Home Estates, Caravan Parks, Camping Grounds and Moveable Dwellings) Regulation 2021)*.

25.3 Approval of Relocatable Dwellings & Manufactured Homes

An application for a relocatable dwelling and/or manufactured home must consist of:

- A Development Application lodged in accordance with the *EP&A Act* (and Regulation thereunder) to gain approval for the use for the land for residential purposes. **Applications will not be considered as a Complying Development Certificate**.

The following applies to *RELOCATABLE HOMES ONLY:*

- An application for a Construction Certificate lodged in accordance with the *EP&A Act* (and Regulation thereunder). A payment of a bond shall be submitted with the Construction Certificate. The bond will be returned upon the finalisation of the building to Council's satisfaction. See sidebar for further details.
- A certification from a suitably qualified individual stating that the dwelling is structurally and physically capable of being relocated;
- A certification from a suitably qualified individual stating that the dwelling is free from pest infestation and rot.
- Photos of the dwelling in its entirety and original setting prior to being relocated.

The following applies to *MANUFACTURED HOMES ONLY:*

- An application lodged under Section 68 *Local Government Act 1993* (and Regulation thereunder) to gain approval for the placement of a manufactured home on the site.
- All relocatable dwellings and manufactured homes that are proposed to be located within the Designated Areas are required to be approved by Council. Applications relating to relocatable dwellings and manufactured homes located outside of the Designated Areas (refer **section 23.4**) can be assessed under delegated authority by the General Manager, provided no objections are received during the notification process.

Advisory Note:

In accordance with Council's *Relocatable Dwellings & Manufactured Homes Policy*, a refundable bond is required upon lodgement of a Development Application involving the relocation of an existing dwelling. The bond is used by Council as an incentive for the applicant to complete the relocation and refurbishment works in a timely efficient manner, and is fully refunded to the applicant upon completion of the works.

25.4 Designated Areas

Throughout the strategic planning process, several streetscapes and thoroughfares were identified as having a unique and recognisable character. The following maps identify locations in which additional design consideration must be given prior to Council granting an approval for a relocatable dwelling or manufactured home, ensuring that the strategic visions of the community have been met and to maintain and improve the street amenity of these areas.

Figure 25.1: Designated Area – COOLAMON

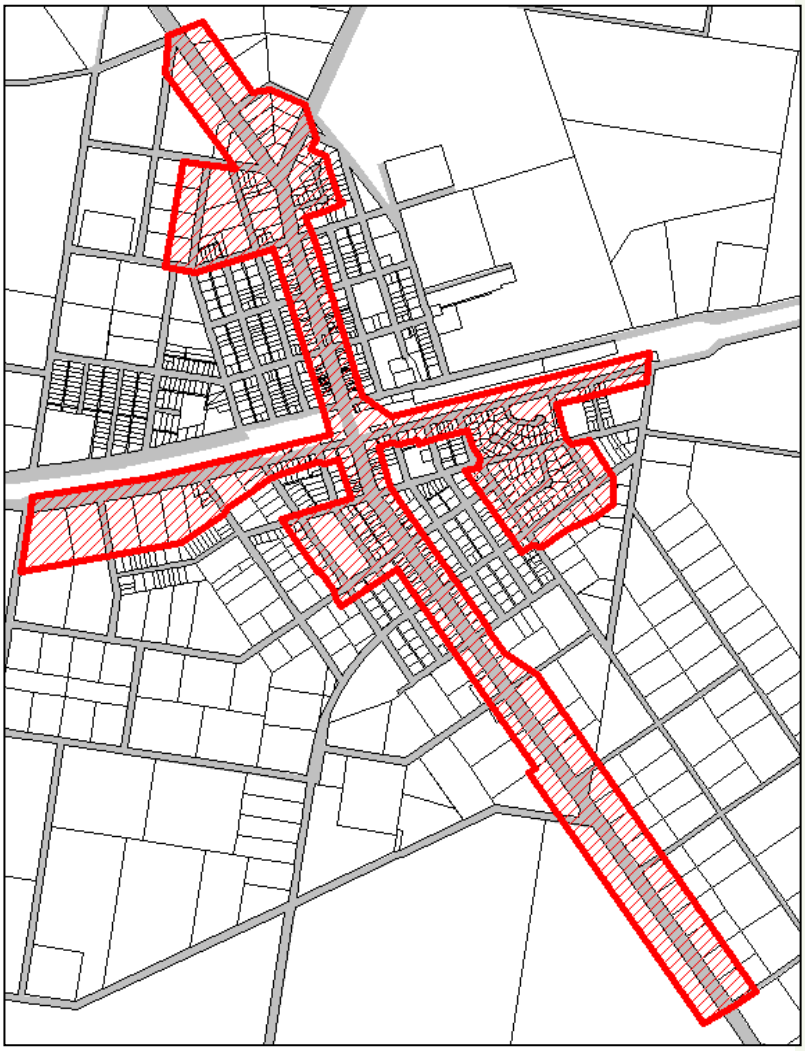
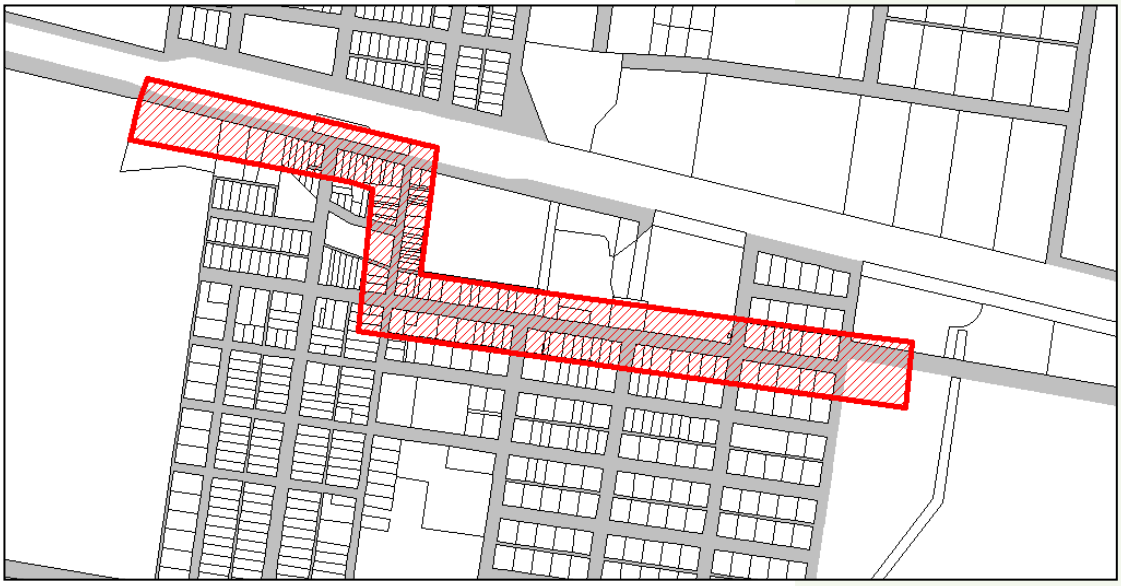


Figure 25.2: Designated Area – GANMAIN



25.5 Development Standards

In accordance with Council's *Relocatable Dwelling and Manufactured Homes Policy* the following development standards apply:

- A time limit of nine months to finalise the building shall be applied to any Development Consent involving the relocation of an existing dwelling. Should the development not be finished within nine months then a review of building works shall be undertaken by Council.
- All relocatable dwellings and manufactured homes that are proposed to be located within the Designated Areas (refer **section 23.4**) shall be provided with a brick fender wall with an appropriately designed footing around the perimeter of the dwelling.
- The proposed building shall conform to the amenity of the area when required works have been completed.
- Prior to final occupancy being granted, the applicant must provide evidence to Council that the development is in full compliance with the applicable BASIX Certificate.
- All external materials must be completed to a satisfactory standard.

25.6 Siting of Manufactured Homes

To ensure that quality urban design outcomes are achieved and streetscape amenity is maintained, manufactured homes must:

- Address the street frontage, whereby the manufactured home is placed so as that the intended front of the structure faces the street.
- Where applicants wish to site a manufactured home at an angle to the front boundary, the angle is to be no greater than 30°, measured from the front boundary to the intended front of the structure.
- On corner allotments, manufactured homes may face either street frontage.

Advisory Note:

The intention of Clause 23.6 is to ensure that manufactured homes are not placed sideways on allotments, therefore allowing for streetscapes to retain character and amenity. The intended front of the home is generally considered to be the elevation containing the front door.

26. Dual Occupancy and Multi-Dwelling Residential Developments

The *Coolamon Local Environmental Plan 2011* aims to promote a range of dwelling types and sizes within land zoned RU5 – Village. Multi-dwelling residential developments are one way of achieving this outcome and are therefore permitted subject to development consent.

The higher densities associated with dual occupancies and multi-dwelling developments often conflicts with existing low-density development and land use patterns, and therefore requires careful management to ensure any such development fits seamlessly into the surrounding streetscape.

Accordingly, Council have developed the following set of development standards to ensure that all multi-unit residential developments proposed for the Shire are designed and constructed to balance the needs of housing variety and demand with that of maintaining the atmosphere, amenity, and image of the Shire's towns and villages.

26.1 Objectives

The objectives of these controls are:

- Allow for a variety of dwelling types within land zoned RU5 – Village.
- Maintain the perception of low-density development within the streetscapes of the towns and villages.
- Ensure all multi-dwelling residential developments are appropriately designed and serviced.

26.2 Application of Controls

These controls apply to the following types of development:

- Dual occupancies; and
- Multi-dwelling residential developments that consist of multiple (3 or more) attached, semi-detached or detached dwellings.

26.3 Development Standards

The following development standards apply to all dual occupancy and multi-dwelling residential developments:

Streetscape

- All dwellings visible from the street shall address the primary street frontage.
- A maximum of 2 storeys is permitted per dwelling.

Setback

- Buildings are to be setback a minimum 8m from the primary road frontage, 3m from a secondary road frontage, 3m from a rear property boundary and 900mm from a side property boundary.

Dwelling Size and Site Area

- The following minimum dwelling sizes apply:
  - 1 bedroom (*small dwelling*): 55m²
  - 2 bedroom (*medium dwelling*): 80m²
  - 3 bedroom + (*large dwelling*): 100m²
- The following minimum site area requirements apply per dwelling:
  - Small Dwelling: 250m²
  - Medium Dwelling:300m²
  - Large Dwelling:400m²
- A maximum of site coverage of 75% (including all hard-stand areas) applies.

Private Open Space

- A minimum cumulative total of 50m² of private open space is to be achieved per dwelling, with at least one single area of 4m x 6m *or* 3m x 8m to be obtained per dwelling.

- Private open space does not include hard-stand areas such as driveways, turning spaces, perimeter paths or service areas.
- Private open space should be screened where appropriate.

Natural Light/Solar Access

- Council will only grant consent to such a development if it is satisfied that adequate provision has been made for natural light and solar access to each dwelling.

Landscaping

- A landscaping plan is to accompany the development application.

Clothes Drying Facilities

- Each dwelling is to be provided with a clothes drying area and line, or space for a mechanical clothes dryer.
- The clothes drying area shall be suitably screened to ensure that any clothes line or drying area is not visible from a public street or area.

Carparking

- Provision shall be made for a minimum of 1 undercover, off-street parking space per dwelling.
- The following number of off-street visitor parking spaces shall be made available unless the applicant can demonstrate the availability of sufficient on-street parking space:
  - 1 visitor parking space per 4 small dwellings
  - 1 visitor parking space per 3 medium dwellings
  - 1 visitor parking space per 2 large dwellings

  Visitor parking spaces are to be provided behind the street setback.
- Internal driveways must be a minimum of 3.5m wide. Where there are 3 or more dwellings, a minimum required width of 6m applies.
- Where an internal driveway services 5 or more dwellings, an internal passing bay with a minimum width of 6m shall be provided within the site.

Services

- Each allotment shall be provided with sewer, mains water and electricity and have access to land-based telecommunications.
- Each dwelling shall:
  - Be capable of being individually metered for water and electricity consumption (and natural gas where provided).
  - Have a stop cock to the water service to enable individual service repairs without disrupting other associated dwelling spaces.
  - Have a separate surcharge gully, with the nominal gully not located in the primary private open space area of any given dwelling.
  - Have its own individual hot water supply.
- Adequate space shall be allowed for the storage of garbage bins at each dwelling.

General

- Each dwelling shall be appropriately numbered for the purposes of identification.
- Each dwelling shall have its own letterbox.

27. Shipping Containers & Rail Carriages

The use of shipping containers and rail carriages for any purpose requires development consent unless the shipping containers or rail carriages are fully located within a building as part of an approved use or are part of the operation of a transport depot or related approved activity.

27.1 Objectives

The objectives of these controls are:

- To ensure adequate amenity/streetscape protection when the installation of a shipping container or rail carriage is approved;
- To apply development controls that guide the approval and installation of shipping containers and rail carriages.

Advisory Note:
The use to which a shipping container or rail carriage is to be put must be a permissible use within the relevant zone, and be related to the predominant use of the land.

27.2 Application of Controls

These controls apply to the following types of development:

- Shipping containers; and
- Rail carriages.

27.3 Development Standards

The following development standards apply:

<u>Shipping Containers ONLY</u>

- Must not be visually intrusive when viewed from a public place or neighbouring property, and must therefore be screened and painted in a colour consistent with other development on the site.
- Must be provided with a means of exit whereby persons within the container can exit should it be closed from the outside, *or alternatively* be fitted with an internally operated alarm that is to be maintained and regularly tested.
- Shipping containers may be used for temporary purposes without the need for consent for a time not exceeding six months.

***Explanatory Notes*:**
Shipping containers may be an economical means of providing storage, however they are often considered to be visually intrusive and unappealing. These controls aim to minimise the visual impact of shipping containers and therefore reduce any potential negative streetscape impact.

Even though shipping containers and rail carriages are heavy by nature, they are still subject to uplift forces just the same as any home, shed or outbuilding.

<u>Shipping Containers *and* Rail Carriages</u>

- Are not to be located within a front or side setback;
- Are limited to either 1 shipping container or rail carriage per property in the RU5 Zone and are limited to either 2 shipping containers or rail carriages per property in the R5 and RU4 Zones;
- Are to be free of major rust or rot and be in a structurally stable condition;
- Must be installed and tied-down to a concrete slab or foundations capable of supporting the combined weight of the container/carriage and its contents. The method of tie-down and slab/foundation design must be certified by a practicing structural engineer. Where foundations are used in place of a concrete slab, a hardstand surface such as compacted gravel (or the like) must be used.

Figure 25.3:
Shipping containers must be secured to the ground similar to any other structure subjected to uplift forces. (2014)



28. Commercial and Industrial Development

The commercial centres of all Shire towns and villages are an important part of the landscape. As well as providing an outlet for services, commercial development also plays its part in supporting other economic activities within the Shire such as tourism.

Likewise, industrial activities play a key role in providing local jobs, as well as support to the commercial and rural industry sectors.

The industrial development provisions and controls in this Section, shall apply to development undertaken on land that is zoned E4 General Industrial under the provisions of the Coolamon Development Control Plan 2015, or for other developments as otherwise deemed appropriate by Council to be included for industrial development as the circumstances of such a development may necessitate due to its scale and context.

28.1 Objective

The objectives of this section are to:

- Ensure that commercial and industrial development is carried out in such a way as to protect and enhance the environmental quality of the Shire.
- Guide owners, developers and the wider community to the standards required by Council in the planning and design of commercial and industrial developments.
- Promote and encourage commercial and industrial development within Coolamon Shire.
- Ensure the most efficient use of commercial and industrial land while safeguarding environmental factors through careful site planning.
- Prioritise the location of proposed commercial developments to those within close proximity to the existing business precincts of each town and village.
- Prioritise the location of proposed industrial developments to those within close proximity to similar industrial uses and separate from built-up residential areas.

28.2 Industrial Development Land-use Conflict & Pollution Management Controls

General

- Careful site planning should be used to maximise the distance between activities that have potential to generate noise, dust, odour etc, and sensitive uses or activities on adjoining land.
- Consideration should be given to conducting noisy, dusty or odourous activities at limited times of the day.

Water

- Industrial activities that generate and discharge liquid trade waste to the reticulated sewerage system must obtain the relevant Liquid Trade Waste approval from Council.
- Development involving construction works should implement an Erosion and Sediment Control Plan.

Dust

- All vehicle entry, exits, loading, unloading, parking and internal manoeuvring areas must be concreted, or sealed with a 2 coat bitumen seal to prevent the emission of dust from trafficable surfaces. This control applies to all such areas forward of the front building line (contained within the front setback area);
- Areas behind the front building line may be treated with grass or 100mm thick DG20 Gravel material or equivalent and dressed with blue metal aggregate.

Noise

- Buildings used for noisy operations should be designed (orientated, insulated etc.) to inhibit the transmission of noise onto nearby properties used for residential or other noise sensitive purposes.
- The design of industrial buildings should avoid vehicle entry doors, roller shutters and other frequently used openings in walls that adjoin residential and other sensitive uses.
- Noisy operations including manufacturing and loading / unloading activities should be carried out at reasonable times.
- Hours of operation and access to the site through residential streets may be restricted where the proposed development involves the generation of noise likely to affect residential areas.
- An acoustic report from a suitably qualified acoustic consultant may be required to be submitted with a Development Application where there is reasonable likelihood that a proposed industrial activity will generate noise that impacts on residential amenity. The information provided in an acoustic report should include the minimum information recommended in the Noise Guide for Local Government 2013. A copy of the Noise Guide for Local Government 2013 can be downloaded from the following website address: http://www.epa.nsw.gov.au/noise/nglg.htm

Visual

- The design of industrial buildings should avoid the use long blank walls with no articulation.
- The design of industrial buildings should incorporate the use of building materials that do not have highly reflective properties.
- Light sources, particularly those which may be used for loading and unloading operations should be directed away from adjoining properties. Should be directed directly onto the property
- Effective use of landscaping should be used to screen unsightly areas, improve streetscape appearance, and reduce the impact of pollutants emitted from industrial activities.
- Careful site planning should be used to limit the amount of overshadowing on adjoining residential sites caused by bulky industrial buildings.
- All waste is to be contained on site free from any view in a clean and tidy manner

Odour

- Development involving odorous activities should be appropriately separated from residential or other sensitive land-uses.

28.3 Setback

The following setbacks will generally be applied to all buildings and structures (excluding signage, fences, gates and landscaping) associated with commercial and industrial development:

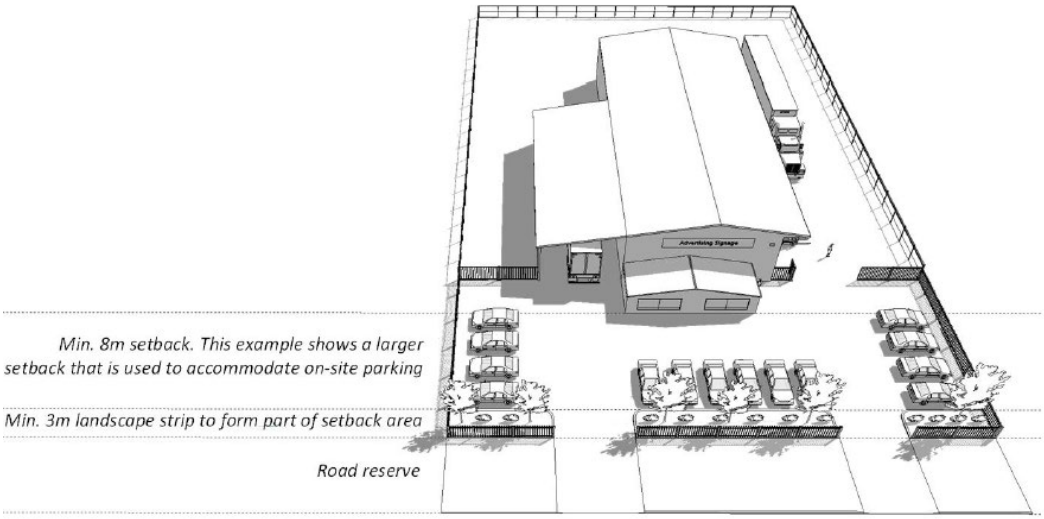
Commercial

- No minimum setback is specified for commercial development proposals.
- Where a front setback has been provided, the setback area should be avoided for loading and unloading operations.
- Side and rear setbacks shall conform to the requirements of the Building Code of Australia.

Industrial

- The front of any industrial building is to be located a minimum of 8m behind the front boundary incorporating a minimum 3 metre landscaping strip.
- Front setback areas larger than the minimum are encouraged where this area is used for on-site car parking.
- Customer parking is permitted in this area, however vision of any such area must be softened by the provision of an adequately maintained landscaped area.
- Front setback areas must not be used for storage or display of goods, excessive signage, or loading /unloading areas
- Side and rear setbacks shall conform to the requirements of the Building Code of Australia – except where industrial development is proposed next to existing residential land uses in this case the minimum side and rear setbacks shall be 6m.
- Variations to these standards will only be considered by Council on based on the individual merits and onsite circumstances of each development proposal.

The following diagram conceptually illustrates the front setback requirements for industrial developments, incorporating a landscape strip:



28.4 Building Design & Form Controls – Industrial Development

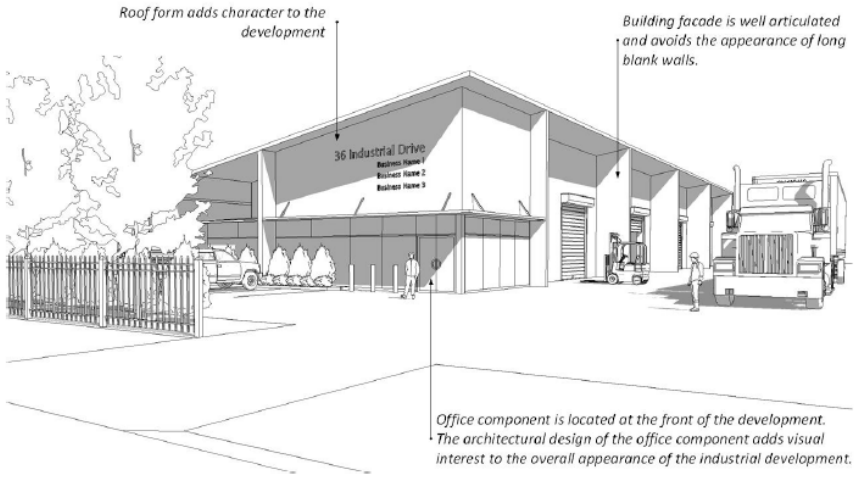
Industrial developments should be designed to be both functional and attractive. The creation of interesting building forms is encouraged as a way of improving the overall appearance and general amenity of industrial areas.

Building Design

- Office components should be located at the street frontage of the structure, and should be architecturally differentiated to break up the facade.
- Long blank walls and unbroken roof lines should be avoided facing the street or public domain. This can be achieved by incorporating one or more of the following techniques into the building facades:

I. Wall plane projection or recesses.
II. Windows.
III. Variation of roof height.
IV. Material changes.
V. Landscaping.

The following diagram conceptually illustrates an industrial building with differentiated office component, creative architecture and good articulation:



Building Materials

- Masonry textured concrete or concrete block, render, brick or other earthen material, glass and metal is encouraged to be incorporated into building design.
- External materials (particularly metal clad roofs and walls) should not be highly reflective if they are visible from a public road or residential area and there is a reasonable probability of glare affecting driver safety or residential amenity.

Fencing

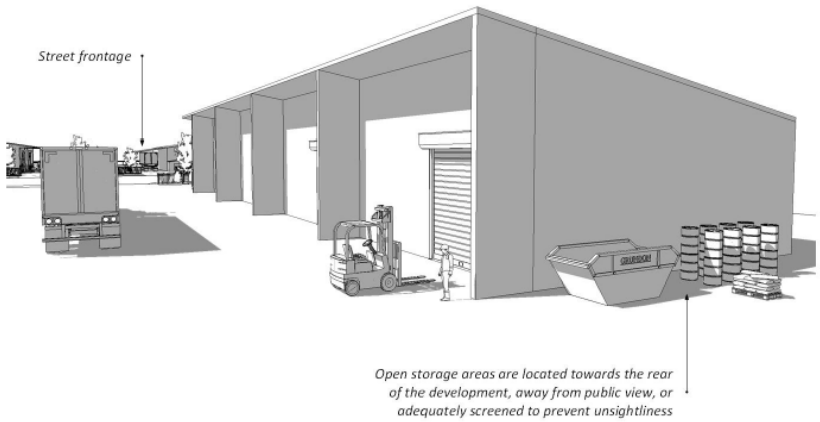
- Security fencing should provide for the protection of property and should be avoided (where possible) around non-productive and exposed areas of the site such as car parking and landscaped areas.
- Security fencing should not wholly obstruct the view of landscaping from the street.
- Security fencing should preserve safe sight distances for all vehicle entry and exit locations, including those on adjoining properties.
- Mesh security fencing should not be located in front of the main building wall towards the street and must not be erected to a height greater than 2.4 metres. Security fencing should not be the dominant visual component of the property.

28.5 Open Storage Areas & Waste Management Industrial Controls

- Storage areas should be located behind the building or another part of the site that cannot be seen from the street or from adjoining properties. Alternatively, these areas must be screened from public view.
- Screen fences should be a maximum of 2.4 metres in height and goods should not to be stacked higher than the actual fence.

- Landscaping is generally not an acceptable method of screening, unless it is already well established and the applicant can demonstrate that the storage area will be effectively screened. Landscaping may only be used for screening purposes when undertaken in conjunction with fencing, and other screening devices.
- The storage of hazardous goods, materials or wastes will not be permitted in areas that adjoin residential or other sensitive land-uses.
- Sufficient space should be provided on-site for the loading and unloading of wastes. This activity is not to be undertaken on any public place.
- Industrial activities that generate and discharge liquid trade waste to the reticulated sewerage system must obtain the relevant Liquid Trade Waste approval from Council. The industrial activity must comply at all times with the requirements of the Liquid Trade Waste Regulation Guidelines and any conditions of the Liquid Trade Waste Approval.

The following diagram conceptually illustrates an industrial building with it's waste collection and storage area located behind the building and away from view from the public street.



28.6 Lot Size & Frontage – Industrial Development

The following attributes will generally be applied to land upon which an industrial development is proposed:

- A minimum lot size of 2,000m².
- A minimum lot frontage of 40m.

Variations to these standards will only be considered by Council on based on the individual merits and onsite circumstances of each development proposal.

28.7 Traffic Movement, Parking and Loading/Unloading Areas.

This section aims to ensure the safe movement of all traffic associated with the development, that adequate car parking facilities have been provided and that goods can be loaded and unloaded without impact on safety or external traffic movements. Accordingly, the following controls will apply:

- Vehicular entry and exit shall be in a forward direction, with vehicular access points located clear of rail crossings, roundabouts and intersections. Access points with inadequate sight distances should also be avoided.

- All internal manoeuvring and parking areas forward of the building line and contained within the front setback shall be constructed to be hard-wearing and be provided with a dust-proof surface with a minimum surface treatment of concrete or a 2 coat bitumen seal.
- Internal parking spaces shall be clearly delineated.
- The number of car parking spaces shall be determined in reference to the NSW Roads and Maritime Services *Guide to Traffic Generating Development* and *Australian Standard 2890 – Parking Facilities*. Any variation will be at the full discretion of Council.
- The loading and unloading of delivery vehicles shall be contained wholly on site. All loading/unloading on public roads will not be permitted.

28.8 External Signage

External signage and advertising will generally need to comply with **section 17 - Signage**. Development Applications will need to include details specific to the proposed signage including:

- A coloured image of the proposed signage.
- A plan (such as a site plan or elevation of the building façade) indicating the location and size of all proposed signage.

28.9 Commercial Food Premises

Commercial developments that provide food for trade, sale or gain are subject to compliance with the *Food Act 2003*. To ensure compliance with the Act, the following controls apply:

- All areas subject to the storage and preparation of food are to be constructed in accordance with the *Australian Standard 4674 – 2004: Design, construction and fit-out of food premises*.
- The premises and equipment are to be maintained in accordance with the *Australia New Zealand Food Standards Code: Food Safety Standard 3.2.3 – Food Premises and Equipment*.

Advisory Note:

Some commercial and charitable organisations may only offer food for trade, sale or gain only several times per year. In these instances, operators may only be required to comply with *Council's Guidelines for One Day Food Stalls*. It is recommended that Council staff be consulted prior to operating under the Guideline.

Other Considerations

Prior to approving applications for proposed commercial and/or industrial uses, Council will also need to consider the following:

- Solid waste disposal.
- Service provision.
- Stormwater disposal.
- Site safety and security.
- Compliance with the *Building Code of Australia*, including fire safety and access for people with a disability.
- The overall compatibility of the proposal with surrounding land uses.

Discharging of Trade Waste

Dischargers of liquid trade waste (i.e. non-residential sewage, but excluding toilet, hand wash basin, shower and bath wastes) shall comply with the requirements of the *NSW Liquid Trade Waste Regulation Guidelines and the Coolamon Shire Council Trade Waste Policy.*

Explanatory Note:

Commercial food premises are the most common trade waste discharger within the Coolamon Shire. The potential for high oil, grease and fat content within sewage from these premises will generally

require the installation of pre-treatment devices such as grease trap and/or fixed-screen basket arrestors.

29. Traffic Generating Development

Often a development proposal will create additional demands on local and regional traffic networks. Such development may also generate parking requirements, the need for loading/unloading areas and on-site manoeuvring areas. For traffic generating development included in *State Environmental Planning Policy (Transport and Infrastructure) 2021* consultation with Transport for NSW (TfNSW) will be undertaken prior to any determination.

When carrying out an assessment of any such proposal, Council must be certain that any of the above mentioned factors cause minimal impact to the surrounding traffic network and land uses.

29.1 Objectives

The objectives of these controls are:

- To minimise the effects of traffic on local and regional road network;
- To minimise the impact of traffic on surrounding land uses;
- To maintain a high standard of safety on the local and regional road network in terms of both vehicular traffic and pedestrian movements.

29.2 Application of Controls

These controls apply to development proposals that:

- Are a new development, an alteration to an existing approved use, or a change of use;
- Have potential for significant vehicular traffic volume as a result of the development;
- Generate a need for parking (for either workers, clients or patrons);
- Incorporate loading/unloading areas;
- Require internal manoeuvring areas;
- Have the potential to cause queuing on the local road network.

29.3 General Development Standards

The following development standards apply:

- The development should not detrimentally effect the operation of the surrounding local and/or regional road network by way of traffic volume, traffic impediment or the creation of a traffic hazard that causes reduced capacity, efficiency or damage to the road;
- All vehicles are to enter and exit the site in a forward manner;
- Provision of car parking spaces shall be provided in accordance with the NSW Roads & Maritime Services publication *Guide to Traffic Generating Development*;
- Parking spaces must be clearly delineated by lines or other approved means;
- All loading and unloading and unloading of delivery vehicles is to be fully contained upon the site of the development and shall not encroach onto the local road and/or pedestrian network;
- On-site provision is to be made to ensure minimal vehicle queuing on the local road and/or pedestrian network;

i. Major Traffic Generating Development

Large developments within the Coolamon Shire will have their traffic and parking requirements assessed on merit considering:

- Likely peak usage times; and
- Extent to which development will attract additional patronage as opposed to drawing on existing visitations.

Major traffic generating developments may be considered by either Local or Regional Traffic Committees including the Transport for NSW under the provisions of *State Environmental Planning Policy (Transport and Infrastructure) 2021* including Schedule 3 of that policy.

ii. Pedestrian Movement

Pedestrian movements from car parks are not to conflict with major vehicle aisles. Analysis is required of land use activities near the car park to determine the type and extent of pedestrian facilities to be provided (e.g. pathways, special crossings, furniture). This also requires examination of the potential for pedestrian movement through the car park from adjacent residential areas and the need for any pedestrian shelter in the car park.

iii. Exception to Development Standards

The following exception may be applied by Council in instances where the prescribed development standards of this section wish to be varied by the applicant and subsequently meet the following requirements:

- A detailed car parking analysis and statement justifying the proposed variation is to be submitted with the Development Application. The statement must specifically identify what the original requirement would have been, what the proposed alternative is, and finally, how the difference between these two factors will be addressed with minimal impact.

Advisory Note:

Council may waive the car parking requirements for small scale additions where either:

- The proposed extension is of a minor nature requiring the provision of not more than one additional car parking space; or
- The extension is not directly related to the parking generation potential of the development e. g. community amenities.

30. Strategic Planning & Future Development

The Coolamon Shire Local Strategic Planning Statement 2039 and the Coolamon Settlement Strategy 2040 identify areas within the Shire suited to growth and increased density. This DCP also provides for, a series of master plans to assist Council, landholders and developers in achieving the aims of the *Strategic Plan*.

In addition to the above, this section also aims to ensure that infill development within existing areas is undertaken to ensure that growth and infrastructure provision is managed sustainably.

30.1 Objectives

To develop strategic plans for the Shire towns and villages that identifies land that:

- Has subdivision potential in accordance with the *Coolamon Local Environmental Plan 2011*;
- Meets the identified criteria of the Coolamon Shire Local Strategic Planning Statement 2039 and the Coolamon Settlement Strategy 2040 in terms of town and village growth corridors;
- Has access to, and can be accessed by, sufficient infrastructure; and
- Ensures the towns and villages of the Shire grow sustainably into suitable areas.

30.2 Application of Controls

This section generally applies to all land within the Coolamon Shire Council area. Specific controls may apply to land identified upon the maps in Appendix 2 prepared by Coolamon Shire Council.

30.3 General Considerations

When assessing a Development Application involving land identified by this section, Council must take into account:

- The potential impact upon future development (including subdivision, service provision and road creation);
- The suitability of a development proposal to the current and future needs of the community; and
- **MAP A: Subdivision Control Plan No. 1 (Coolamon – Marrar – Ganmain); or**
  MAP B: Subdivision Control Plan No. 2 – (Ardlethan – Beckom – Matong) in accordance with Clause 6.4 – Essential Services of the *LEP*. (Refer Appendix 2)
- The Coolamon Shire Local Strategic Planning Statement 2039 and the Coolamon Settlement Strategy 2040

30.4 Development Contributions

Various development contributions may apply to some development proposals throughout the Shire. The different contributions are levied to help Council fund the provision, upgrading and maintenance of public services and infrastructure. These include:

- Section 7.11 Development Contributions.
  Section 7.11 of the *EP&A Act* allows Council to levy contributions from developers for development that will or is likely to require the provision of or increase the demand for public amenities and public services within the area.

  Please refer to Council's *Section 94 Contributions Plan* for specific details and levy rates.

- Section 7.11 Levy Development Contributions Plan.
  Section 94A of the *EP&A Act* allows Council to levy contributions from developers towards the provision, extension or augmentation of public amenities or public services (or towards recouping the cost of their provision, extension or augmentation).

- Sewer Capital Contribution
  Should an allotment be eligible for subdivision under the *LEP*, or if part of a rating assessment is sold separately, each new assessment created within the Coolamon or Ganmain sewer catchment incurs a minimum Capital Contribution fee as set out in Council's *Coolamon and Ganmain Sewerage Development Servicing Plan Policy*.

  In some cases the required fee may be greater subject to the need to construct additional mains, manholes or connection spurs. Please refer to the *Policy* for further details.

30.5 Logan Street/Canola Way (refer Appendix 2)

The land included in ***Map C*** in Appendix 2 has been identified by Council as a potential new development area. The area is in a high profile locations on the main east-west corridor through Coolamon. The proximity to this traffic corridor as well as the adjacent railway corridor also makes this area suited to the location of home-related enterprise.

The design outlined by ***Map C (Logan Street/Canola Way Strategic Planning Map)*** is indicative only, and is only intended to serve as a guide to the future development patterns of this area.

30.6 Coopers Hill (refer Appendix 2)

The land included in ***Map D*** in Appendix 2 has been identified by Council as being highly suited to large lot 'lifestyle' type allotments. Strategically, the use of this area for growth ensures a balance is struck to that seen on the southern fringes of Coolamon and ultimately ensures sustainability of the Cowabbie Street Business Precinct.

The design outlined by ***Map D ('Coopers Hill' Strategic Planning Map)*** is indicative only, and is only intended to serve as a guide to the future development patterns of this area.

PART E: APPENDICES

APPENDIX 1: Glossary of Terms

Adjoining Land means land where title boundaries abut an Application Site or is separated from the application site only by a road, pathway, driveway, easement, right of way or similar thoroughfare.

Advertised development means development other than designated development that is identified as advertised development by the *Environmental Planning and Assessment Act 1979 or Regulations 2021,* an environmental planning instrument or a development control plan.

Advertising in relation this DCP means the placement of a public notice in a newspaper circulating at least once a week in the locality. The notice is to comprise a list of development applications received and the Council will include the following information:

(a) address of the application site;
(b) description of the nature of the application; and
(c) advice that information concerning the closing date for the receipt of submissions is available from Council's office.

Aisle means an area of pavement used by vehicles to gain access to parking spaces.

Applicant means the person who has lodged a development application.

Approved means approved by Coolamon Shire Council.

Articulated Vehicle means a semi-trailer or the like.

AS (Australian Standard) is a published document which sets out technical specifications or other criteria necessary to ensure that a material or method will consistently do the job it is intended to do.

AS/NZ means the relevant Australian and New Zealand Standard.
Asset protection zone (APZ) means an area comprising an inner protection area and outer protection area which forms an area surrounding a development managed to reduce the bushfire hazard to an acceptable level. The width of an asset protection zone will vary with slope and construction level;

Balcony means an upper storey platform projecting from the wall of a building whether or not it is supported by posts or brackets, and enclosed by a balustrade.

Battleaxe allotment means an allotment at the rear of a subdivision with vehicular access being provided by an access corridor, access way, right-of-carriageway or the like;

BCA means the Building Code of Australia.

Boundary Set Back means the distance from a site boundary to the external wall of a building.

Building alignment means a line parallel to the external walls of the main building envelope, being either the front, side or rear wall/s.

Bushfire prone area means land recorded for the time being as bushfire prone land on a bushfire prone land map for the area

Bushfire Prone Land map means the map that shows bushfire prone land in the Coolamon local government area;

Cleaning is the physical removal of dirt from equipment surfaces by washing in detergent and warm water with mechanical action such as scrubbing.

Coolamon Shire Council (or simply *Council*) includes Council staff properly exercising delegation by the Council from time to time.

Delegated Authority means authority to make a decision resolved by Council under section 377 of the Local Government Act 1993 or as described in Council's Delegation Manual.

Design Requirements/Suggestions means the prescriptive ways to achieve the desired outcome of the performance criteria.

Driveway means a paved area providing vehicular access between a public road and a parking or loading area.

Façade means the face or front of a building.

Food Handler means a person who directly engages in the handling of food, or who handles surfaces likely to come into contact with food.

Food premises means a business, enterprise or activity that involves the handling of food intended for sale or the sale of food.

Gross Floor area (GFA) has the same meaning as the *Coolamon Local Environmental Plan 2011*

Ground level means the level of the site before development is carried out

Heritage Impact Statement means a document consisting of a statement demonstrating the heritage significance of a heritage item, and assessment of the impact that proposed development will have on that significance and proposals for measures to minimise that impact.

Heritage significance means a historic, scientific, cultural, social, archaeological, natural or aesthetic significance.

Illuminated in relation to an advertisement or advertising structure, means designed to be illuminated by an internal or external artificial source of light.

Impervious means impermeable to water, moisture or grease.

Land includes any building or part of a building erected on the land.

Landscape plan means a plan outlining the extent, type and location of proposed landscaping on a site.

Loading Bay means an area of suitable dimensions, either within or outside a building designed for the standing of vehicles whilst loading or unloading goods.

Major Road means a state or regional road, where:

- state road means a road that predominantly carries through traffic from one region to another whose primary function is to service large traffic volumes
- regional road means a road that connects the state roads to areas of development and carries traffic directly from one part of a region to another. It may also relieve traffic on state roads in some instances.

Minor Road means a collector or local road where:

- collector road means the road which connects the sub-arterial roads to the local road system in developed areas
- local road means the subdivisional road within a particular developed area. Local roads are used solely as local access roads, but traffic volumes and types of vehicles will depend on the intensity and nature of the development.

Natural Surveillance means the ease of observation by people of buildings, spaces and activities undertaken by other people. People should be able to casually see what others are doing and this should deter crime.

Neighbouring land means any land, other than adjoining land, which in the opinion of the authorised council officer may be detrimentally affected by the use of an application site or the erection of a building on an application site (and includes properties in a neighbouring local council area).

Notification means written notice to selected property owners advising that a development application has been received by Council and that they can make a submission in accordance with the written advice.

Notification plan means the A4 plan accompanying the letter of notification.

Owner means the name and address of the proprietor as registered in Council's rating records.

Owners Corporation means the group of people representing the owners of strata titled land.

Parapet a low wall or barrier, placed at the edge of a platform, balcony, roof.

Parking Space means an area of pavement of suitable dimensions which is designed and marked for the parking of a car.

PCA means the Principal Certifying Authority under the EPA Act.

People with a disability means people of any age who, as a result of having an intellectual, physical, psychiatric or sensory impairment, either permanently or for an extended period, have substantially limited opportunities to enjoy a full and active life;

Performance criteria means a clear statement of the desired outcomes a development should achieve and is used in the assessment of development proposals.

Planning for Bushfire Protection (PBP) means the document developed by the NSW Rural Fire Service in consultation and collaboration with planning NSW (now the Department of Infrastructure, Planning and Natural Resources);

Private open space means that part of a site designed to meet the outdoor needs of dwelling occupants.

Public land means any land (including a public reserve) vested in or under the control of the council

Public place is defined under the Local Government Act 1993 as a public road, bridge, jetty, wharf, road-ferry, public reserve, public bathing reserve, public baths, public swimming pool or other public place which the public are entitled to use.

Service Bay means an area within or outside a building specifically designed or intended for the servicing of vehicles or the installation of accessories.

Setback means the distance from a site boundary to the external wall of a building, not being a balcony or balustrade.

Site analysis means the process of identification and analysis of key features of the site and immediate surroundings to assist in understanding how future dwellings will relate to each other and to their locality. A site analysis diagram typically includes:

- Physical characteristics of the site (slope, drainage, etc)
- Context of the site (adjacent buildings or structures, relationship to the street etc)
- Overshadowing
- Orientation of true solar north
- Prevailing winds
- Trees on or affecting the site

Stack Parking means parking spaces in a line, one behind the other.

Stormwater means rainwater which drains off roofs, roads, driveways and other solid surfaces or hardstand areas.

Stormwater management means the implementation of both structural and best management practices to minimise the effects of stormwater on the environment;

Streetscape means the character of a locality (whether it is a street or precinct) defined by the spatial arrangement and visual appearance of built and landscape features when viewed from the street;

Subdivision of land has the same meaning as in the EPA Act

Submission means a letter, petition or similar written representation received from individuals or groups of people regarding a particular development application.

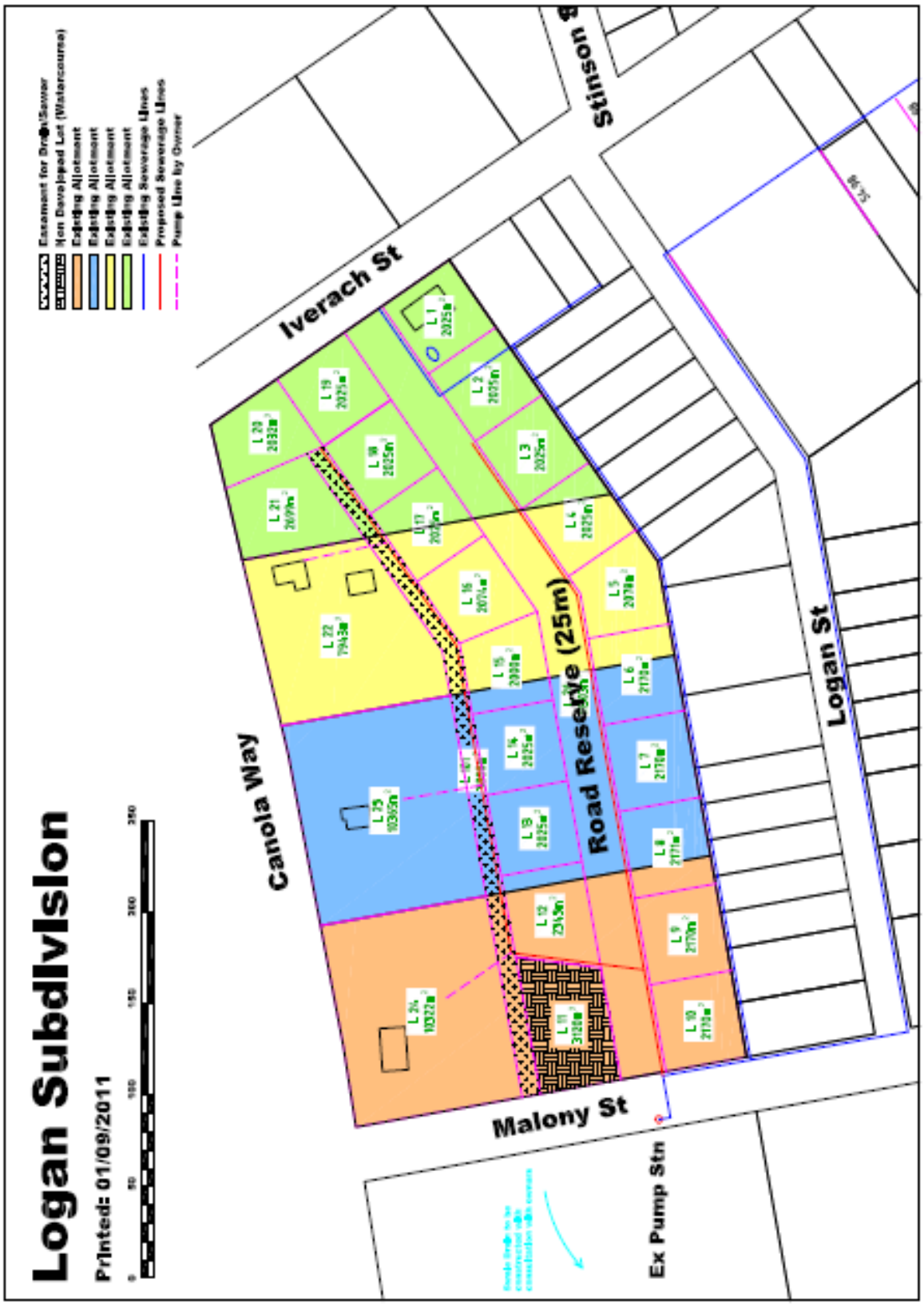
The EP&A Act means the *Environmental Planning and Assessment Act 1979.*

The DCP means this development control plan.

The LEP means the *Coolamon Local Environmental Plan 2011*.

Wheelchair access in relation to any 2 points means a continuous path of travel between those points which can be negotiated by a person using a wheelchair.

APPENDIX 2: Strategic Planning Maps




"Coopers Hill"
Drainage & Services (20m) Easement
30m Asset Protection Zone
Road Reserve (40m)
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Existing Allotment
Kindra State Forest
Kindra Forest
Ardlethan Rd
Lorna Ln
Road Reserve (40m)
Road Reserve (40m)
Notes:
Lots to be serviced by
On Site Sewage Management Systems
Printed: 28/03/2011
Scale 1:40000 (A1)